



Wimmera CMA Enterprise Agreement

2024-2028

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1. TITLE

1.1 This agreement shall be known as the **‘Wimmera CMA Enterprise Agreement 2024-2028’**

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3. PERIOD OF OPERATION

3.1 This Agreement will commence operation 7 days following approval by Fair Work Commission.

3.1.1 The nominal expiry date of this Agreement will be 6th August 2028.

3.1.2 The parties agree to commence negotiations for a new agreement six months prior to the expiry date.

3.2 No Extra Claims / Absorption

3.2.1 It is a term of this Agreement that no further claims by way of wages, salaries or conditions will be pursued during the life of this Agreement.

3.2.2 Clause 3.2.1 does not apply to staff promotion, transfer or review of a position by Management due to changes to position functions and accountabilities.

4. APPLICATION

4.1 This Agreement shall cover;

a. Wimmera Catchment Management Authority (Wimmera CMA); and

4.2 All employees of Wimmera CMA with the exception of all executive employees of the Authority, employed on Public Entity Executive Contracts. (Executive employees include the Chief Executive Officer and Senior Managers if employed on Public Sector Senior Executive contracts)

4.3 This Agreement will be read and interpreted in conjunction with the National Employment Standards (NES). Where there is an inconsistency between this Agreement and the NES, and the NES provides a greater benefit, the NES provision will apply to the extent of any inconsistency.

5. DEFINITIONS

Act	Shall mean the <i>Fair Work Act 2009</i> (Cth)
Agreement	Shall mean this agreement
ATO	Shall mean the Australian Tax Office
Award	Shall mean the Victorian State Government Agencies Award 2015 or its successor
Board	Shall mean the duly appointed board of the Wimmera CMA
CEO	Chief Executive Officer
Continuous Service	Is work for the employer on a regular systematic basis (including any paid period of authorised leave or absence and excludes any leave without pay)
DEECA	Shall mean the Department of Energy, Environment and Climate Action
Employees	Shall mean the persons employed by the Wimmera CMA who are subject to this agreement
Executive Level Manager	Chief Executive Officer and Senior Managers employed on the Victorian Government's Public Entity Executive Employment contracts
FWC	Shall mean Fair Work Commission
Field Staff	Shall mean employees who are engaged in works associated with the operational arm of the authority and who generally undertake duties in the field.
HR	Shall mean human resources
Immediate Family	Spouse (refer to definition of spouse), and child or adult child including an adopted child, step child or an ex nuptial child), parent, grandparent, grandchild or sibling of the employee or spouse of the employee
Job Evaluation	An analytical systematic and quantitative assessment of the relative work value of positions
KPI's	Shall mean key performance indicators
Leave	Shall mean leave without loss of ordinary pay unless specified as leave without pay.
Minimum Employment Period	A period set by the authority to assess suitability for employment (previously known as probation)
NES	National Employment Standards
Office Staff	Shall mean employees who are generally engaged in activities associated with the business, administration and management arm of the authority and who operate from office locations.
Ordinary Day	The hours per day that an employee would routinely work as their standard day.
Ordinary Rate	To determine the ordinary hourly rate of pay, the annual salary (relevant to their classification and level. Rates as prescribed in appendix A); shall be divided by one thousand nine hundred and seventy six (1976)
PEER	Shall mean Public Entity Executive Remuneration
Rest Break	An unpaid period of not less than 30 min
SO	Shall mean Senior Officers – an employee whose duties and responsibilities exceed those specified in the banded structure.
Senior Manager	A Manager in charge of a program who reports directly to the CEO.
Spouse	Shall include a former spouse, a de facto (or former de facto) spouse. De facto spouse means a person who lives with the employee as husband, wife or same sex partner on a bona fide domestic basis, although not legally married to the employee
Staff Consultative Committee	Shall mean representatives of staff and management as defined in clause 9

Standard Day	Shall mean 7.6 hours per day, except for part time employees who should refer to the terms of their employment agreement
Statutory community organisation	Shall mean a community organisation created by government legislation.
The Agreement	Shall mean the Wimmera CMA Enterprise Agreement 2024-2028
The Employer	Wimmera CMA
Union	An organisation entitled to represent the employee's rights.
TRP	Total Remuneration Package – includes cash salary, allowances, benefits; superannuation and FBT (excluding annual incentives)
Wimmera CMA	Shall mean the Wimmera Catchment Management Authority, the employer

6. FLEXIBLE WORK ARRANGEMENTS

6.1 Individual Flexibility Arrangements

- 6.1.1** The employer and an employee may enter into an individual flexibility agreement pursuant to this clause to vary the effect of the following terms of the agreement;
- (a) remuneration arrangements for Senior Managers, SO's and Technical Specialists
 - (b) arrangements about when work is performed
 - (c) overtime rates
 - (d) penalty rates
 - (e) allowances
 - (f) leave loading.
- 6.1.2** The arrangement must meet the genuine needs of the employer and employee and be genuinely agreed to by the employer and employee.
- 6.1.3** The employer and the individual employee must have genuinely made the agreement without coercion or duress. An agreement under this clause can only be entered into after the individual employee has commenced employment with the employer.
- 6.1.4** The employee may nominate a representative to assist in negotiations for an individual flexibility agreement.
- 6.1.5** The agreement between the employer and the individual employee must:
- (i) be confined to a variation in the application of one or more of the terms listed in clause 6.1 and
 - (ii) result in the employee being better off overall at the time the agreement is made than the employee would have been if no individual flexibility agreement had been agreed to.
- 6.1.6** An individual flexibility agreement must be recorded in writing and signed by the parties to it, and if the employee is under 18 years of age, signed by a parent or guardian of the employee; and include the name of the employer and employee and the start date. A copy must be provided to the employee within 14 days after it is agreed to.
- 6.1.7** This enterprise agreement has effect in relation to the employee and the employer as if it were varied by the arrangement and the arrangement is taken to be a term of the enterprise agreement, provided that the arrangement must result in the employee being better off overall than the employee would have been if no individual flexibility arrangement were agreed to.

- 6.1.8** The individual flexibility agreement must include details of;
- (i) the terms of the enterprise agreement that will be varied by the arrangement; and
 - (ii) how the arrangement will vary the effect of the terms; and
 - (iii) how the employee will be better off overall in relation to the terms and conditions of his or her employment as a result of the arrangement.
- 6.1.9** The employer must ensure that the terms of the individual flexibility arrangement;
- (i) are about permitted matters under section 172 of the *Fair Work Act 2009*; and
 - (ii) are not unlawful terms under section 194 of the *Fair Work Act 2009*; and
 - (iii) result in the employee being better off overall than the employee would be if no arrangement was made.
- 6.1.10** Upon request by an employee party to an individual flexibility agreement, the employer will conduct a review of benefits under the individual flexibility agreement in comparison to the benefits to which the employee would otherwise be entitled under this enterprise agreement and provide the results of the review to the employee. Provided that the employer will not be required to conduct such a review more than once in any 12-month period/if the request is unreasonable in the circumstances or is made vexatiously.
- 6.1.11** Any dispute as to whether the terms of an individual flexibility agreement would result in the employee being better off overall than the employee would have been if no individual flexibility arrangement were agreed to will be dealt with pursuant to the dispute resolution clause of this enterprise agreement.
- 6.1.12** An employee or the employer may terminate the operation of an individual flexibility agreement by giving not more than 28 days written notice to the other party or the employee and the employer may terminate the agreement at any time, in writing, if they agree.
- 6.1.13** An individual flexibility agreement may be expressed to operate for a specified term or while the employee is performing a specified role (such as acting in a specified higher position), in which case the individual flexibility agreement will cease to operate on expiry of the specified term or when the employee ceases to perform the specified role.

6.2 Right to Request Flexible working Arrangements

In accordance with section 65 of the *Fair Work Act 2009*, an Employee may request a change in their working arrangements on the basis of the following circumstances:

- (a) the Employee is the parent, or has responsibility for the care, of a child who is of school age or younger
- (b) the Employee is a carer (within the meaning of the *Carer Recognition Act 2010*)
- (c) the Employee has a disability
- (d) the Employee is 55 or older
- (e) the Employee is experiencing violence from a member of the Employee's family

- (f) the Employee provides care or support to a member of the Employee's immediate family, or a member of the Employee's household, who requires care or support because the member is experiencing violence from the member's family.
- (g) the employee is pregnant

Note: Examples of changes in working arrangements include changes in hours of work, changes in patterns of work and changes in location of work.

6.2.1 To avoid doubt, and without limiting clause 6.2, an Employee may request to work part-time to assist the Employee to care for the child if the Employee:

- (a) is a parent, or has responsibility for the care, of a child; and
- (b) is returning to work after taking leave in relation to the birth or adoption of the child.

6.2.2 An Employee is not entitled to make a request under this clause unless:

- (a) for an Employee other than a casual Employee – the Employee has completed at least 12 months of continuous service with the Employer immediately before making the request; or
- (b) for a casual Employee – the Employee:
 - (i) is a long-term casual Employee of the Employer immediately before making the request; and
 - (ii) has a reasonable expectation of continuing employment by the Employer on a regular and systematic basis.

6.2.3 A request made under this clause must be made in writing and set out details of the change sought and the reasons for the change.

6.2.4 On receipt of a request by an Employee under this clause, the Employer must give the Employee a written response within 21 days, stating whether the Employer grants or refuses the request.

6.2.5 The Employer may only refuse the request on reasonable business grounds.

6.2.6 Without limiting what are reasonable business grounds for the purposes of clause 6.2.5, reasonable business grounds include the following:

- (a) that the new working arrangements requested by the Employee would be too costly for the Employer
- (b) that there is no capacity to change the working arrangements of other Employees, or recruit new Employees, to accommodate the new working arrangements requested by the Employee
- (c) that it would be impractical to change the working arrangements of other Employees, or recruit new Employees, to accommodate the new working arrangements requested by the Employee
- (d) that the new working arrangements requested by the Employee would be likely to result in a significant loss in efficiency or productivity
- (e) that the new working arrangements requested by the Employee would be likely to have a significant negative impact on customer service.

6.2.7 If the Employer refuses the request, the written response under clause 6.2.4 must include details of the reasons for the refusal.

7. DISPUTES PREVENTION AND SETTLEMENT

7.1 Disputes

- 7.1.1** Unless otherwise provided for in this agreement, a dispute or grievance about a matter arising under this agreement or the National Employment Standards, other than termination of employment, must be dealt with in accordance with this clause. This includes a dispute about whether the employer had reasonable grounds to refuse a request for flexible working conditions under clause 6 or an application to extend unpaid parental leave under clause 26
- 7.1.2** The employer or an employee covered by this agreement may choose to be represented at any stage by a representative, including the employer or employee organisation.

7.2 Obligations

- 7.2.1** The parties to the dispute must genuinely attempt to resolve the dispute through the processes set out in this clause and must cooperate to ensure that these processes are carried out expeditiously.
- 7.2.2** Whilst a dispute is being dealt with in accordance with this clause, work must continue in accordance with usual practice, provided that this does not apply to an employee who has a reasonable concern about an imminent risk to his or her health or safety, has advised the employer of this concern and has not unreasonably failed to comply with a direction by the employer to perform other available work that is safe and appropriate for the employee to perform.
- 7.2.3** No person covered by the agreement will be prejudiced as to the final settlement of the dispute by the continuance of work in accordance with this clause.

7.3 Agreement and dispute settlement facilitation

- 7.3.1** For the purposes of compliance with this agreement (including compliance with this dispute procedure); where the chosen employee representative is another employee of the employer, they must be given reasonable opportunity to represent employees concerning matters pertaining to the employment relationship including but not limited to;
- (a) Investigating the circumstances of a dispute or an alleged breach of this agreement or the National Employment Standards
 - (b) Endeavouring to resolve a dispute arising out of the operation of the agreement or the National Employment Standards
 - (c) Participating in conciliation, consent arbitration or any other agreed alternative dispute resolution process.
- 7.3.2** Any release from normal duties is subject to the proviso that it does not unduly affect the operations of the employer.

7.4 Discussion of dispute

- 7.4.1** The dispute must first be discussed by the aggrieved employee(s) with the immediate supervisor of the employee(s).
- 7.4.2** If the matter is not settled, the employee(s) can require that the matter be discussed with another representative of the employer appointed for the purposes of this procedure.

7.5 Internal process

7.5.1 If any party to the dispute who is covered by the agreement refers the dispute to an established internal dispute resolution process, the matter must first be dealt with in accordance with that process, provided that the process is conducted in a timely manner and it is consistent with the following principles;

- (a) The rules of natural justice
- (b) Appropriate mediation or conciliation of the dispute is provided
- (c) Any views on who should conduct the review shall be considered by the employer
- (d) The process is conducted as quickly, and with as little formality, as a proper consideration of the matter allows.

7.5.2 If the dispute is not settled through an internal dispute resolution process, the matter can be dealt with in accordance with the processes set out below.

7.5.3 If the matter is not settled either party to the dispute may apply to the Fair Work Commission (FWC) to have the dispute dealt with by conciliation.

7.6 Disputes of a collective character

7.6.1 The parties covered by the agreement acknowledge that disputes of a collective character concerning more than one employee may be dealt with more expeditiously by an early reference to FWC.

7.6.2 No dispute of a collective character may be referred to FWC directly unless there has been a genuine attempt to resolve the dispute at the workplace level prior to it being referred to FWC for conciliation.

7.7 Conciliation

7.7.1 Where a dispute is referred for conciliation, a member of FWC will do everything that appears to the member to be right and proper to assist the parties to the dispute to agree on settlement terms.;

7.7.2 This may include arranging:

7.7.2.1 conferences of the parties to the dispute and/or their representatives presided over by the member; and

7.7.3 for the parties to the dispute and/or their representatives to confer among themselves at conferences at which the member is not present.

7.7.4 Conciliation before FWC shall be regarded as completed when;

7.7.4.1 the parties to the dispute have reached agreement on the settlement of the dispute; or

7.7.4.2 the member of FWC conducting the conciliation has, either of their own motion or after an application by either party, satisfied themselves that there is no likelihood that within a reasonable period, further conciliation will result in a settlement; or

7.7.4.3 the parties to the dispute have informed the FWC member that there is no likelihood of agreement on the settlement of the dispute and the member does not have substantial reason to refuse to regard the conciliation proceedings as completed.

7.8 Arbitration

- 7.8.1** If the dispute has not been settled when conciliation has been completed, either party to the dispute may request that FWC proceeds to determine the dispute by arbitration.
- 7.8.2** Where a member of FWC has exercised conciliation powers in relation to the dispute, the member must not exercise, or take part in the exercise of, arbitration powers in relation to the dispute if a party to the dispute objects to the member doing so.
- 7.8.3** Subject to sub-clause 7.8.4, the determination of FWC is binding upon the persons covered by this agreement.
- 7.8.4** An appeal lies to a Full Bench of FWC, with the leave of the Full Bench, against a determination of a single member of FWC made pursuant to this clause.

7.9 General Powers and Procedures of the FWC

Subject to any agreement between the parties to the dispute in relation to a particular dispute and the provisions of this clause, in dealing with a dispute through conciliation or consent arbitration, FWC may conduct the matter in accordance with Subdivision B of Division 3 of Part 5-1 of the *Fair Work Act 2009*.

8. INTRODUCTION OF CHANGE

8.1 This term applies if;

- (a) the employer has made a decision to introduce a major change to production, program, organisation, structure, or technology in relation to its enterprise; and
- (b) the change is likely to have a significant effect on employees of the enterprise.

8.2 The employer must notify the relevant employees of the decision to introduce the major change;

8.3 The relevant employees may appoint a representative for the purposes of the procedures in this term.

8.4 If;

- (a) a relevant employee appoints, or relevant employees appoint, a representative for the purposes of consultation; and
- (b) the employee or employees advise the employer of the identity of the representative; the employer must recognise the representative.

8.5 Obligations

- (a) The parties to the dispute and their representatives must genuinely attempt to resolve the dispute through the processes set out in this clause and must cooperate to ensure that these processes are carried out expeditiously.
- (b) While a dispute is being dealt with in accordance with this clause, work must continue in accordance with usual practice, provided that this does not apply to an Employee who has a reasonable concern about an imminent risk to their health or safety, has advised the Employer of this concern and has not unreasonably failed to comply with a direction by the Employer to perform other available work that is safe and appropriate for the Employee to perform.

- (c) No person covered by this Agreement will be prejudiced as to the final settlement of the dispute by the continuance of work in accordance with this clause

8.6 Internal Process

- (a) If any party to the dispute who is covered by this Agreement refers the dispute to an established internal dispute resolution process, the matter must first be dealt with according to that process, provided that the process is conducted as expeditiously as possible and:
 - (i) is consistent with the rules of natural justice; and
 - (ii) provides for mediation or conciliation of the dispute; and
 - (iii) provides that the Employer will take into consideration any views on who should conduct the review; and
 - (iv) is conducted with as little formality as a proper consideration of the dispute allows.
- (b) If the dispute is not settled through an internal dispute resolution process, the matter can be dealt with in accordance with the processes set out below.
- (c) If the matter is not settled either party to the dispute may apply to the FWC to have the dispute dealt with by conciliation.

8.7 As soon as practicable after making its decision, the employer must;

- (a) discuss with the relevant employees and their representatives (if any);
 - (i) the introduction of the change; and
 - (ii) the effect the change is likely to have on the employees; and
 - (iii) measures the employer is taking to avert or mitigate the adverse effect of the change on the employees.
- (b) for the purposes of the discussion — provide, in writing, to the relevant employees and their representatives (if any);
 - (i) all relevant information about the change including the nature of the change proposed; and
 - (ii) information about the expected effects of the change on the employees; and
 - (iii) any other matters likely to affect the employees.

8.8 However, the employer is not required to disclose confidential or commercially sensitive information to the relevant employees.

8.9 The employer must give prompt and genuine consideration to matters raised about the major change by the relevant employees or their representatives.

8.10 If a term in the enterprise agreement provides for a major change to production, program, organisation, structure or technology in relation to the enterprise of the employer, the requirements set out in subclauses (8.2), (8.3) and (7) are taken not to apply.

8.11 In this term, a major change is likely to have a significant effect on employees if it results in;

- (i) the termination of the employment of employees; or
- (ii) major change to the composition, operation or size of the employer's workforce or to the skills required of employees; or

- (iii) the elimination or diminution of job opportunities (including opportunities for promotion or tenure); or
- (iv) the alteration of hours of work; or
- (v) the need to retrain employees; or
- (vi) the need to relocate employees to another workplace; or
- (vii) the restructuring of jobs.

8.12 In this term, relevant employees mean the employees who may be affected by the major change.

8.13 Consultation about changes to rosters or hours of work

- (a) Where an employer proposes to change an employee's regular roster or ordinary hours of work, the employer must consult with the employee or employees affected and their representatives, if any, about the proposed change.
- (b) The employer must:
 - (i) provide to the employee or employees affected and their representatives, if any, information about the proposed change (for example, information about the nature of the change to the employee's regular roster or ordinary hours of work and when that change is proposed to commence).
 - (ii) invite the employee or employees affected to give their views about the impact of the proposed change (including any impact in relation to their family or caring responsibilities); and
 - (iii) give consideration to any views about the impact of the proposed change that are given by the employee or employees concerned and/or their representatives.
- (c) The requirement to consult under this clause does not apply where an employee has irregular, sporadic or unpredictable working hours.
- (d) These provisions are to be read in conjunction with other agreement provisions concerning the scheduling of work and notice requirements.

9. STAFF EA CONSULTATIVE COMMITTEE

9.1 The parties agree that the consultative structure for reviewing and monitoring implementation of the agreement, and resolving concerns and /or issues arising from the agreement is the Consultative Committee.

9.2 Composition of the EA Consultative Committee

The EA Consultative Committee shall comprise at least six people and may be varied from time to time by agreement between the parties and shall initially comprise of the following;

CEO	Chief Executive Officer
Senior Management	1 Representative
Staff	3 Representatives as elected by the staff
HR Representative to coordinate the EA process.	

9.3 Consultation Process

9.3.1 Reach decisions through consensus that shall operate as recommendations to the parties they represent; where consensus is not reached go back to the staff.

- 9.3.2** Consider reports and ideas generated by Employee and Employer representatives with the intent to continuously improve the business performance of Wimmera CMA by identifying and quantifying cost-effective service orientated work practices.
- 9.3.3** Provide updates to all staff on outcomes of meetings. Members of the Consultative Committee will make themselves available to employees for the purpose of receiving and providing information.

This Committee will regularly communicate with all employees of Wimmera CMA.

10. TYPES OF EMPLOYMENT

10.1 Full-Time

- 10.1.1** A full-time employee is one who is engaged to work 38 hours per week.

10.2 Part-Time

- 10.2.1** Provisions relating to salary, leave and all other entitlements contained within this Agreement apply to part-time Employees on a pro rata basis calculated on the number of ordinary hours worked.
- 10.2.2** A part-time employee is an employee who works less than full-time hours of 38 per week.
 - (a) The hours of work of a part-time employee will be determined by agreement between CMA and the employee at the commencement of part-time employment. The agreement shall include an agreed roster specifying the days in each fortnight on which the employee will work, the hours of those days upon which the employee will work, and the number of hours the employee will work on each day worked. These hours will be considered as the employee's ordinary hours of work.
 - (b) The ordinary hours of work can be varied by agreement between CMA and the employee,
- 10.2.3** A Part-time employee must be engaged and paid for at least three (3) hours of work on each occasion they are required to attend work.
 - (a) Provisions relating to salary, leave and all other entitlements contained within this Agreement apply to part-time Employees on a pro rata basis.

10.3 Casual

- 10.3.1** The Wimmera CMA may employ persons on a casual basis. A casual employee is engaged by the hour and paid as such.
- 10.3.2** The employment of casuals in all areas covered by this Agreement is limited to meeting short-term work demands or specialist skill requirements which are not continuing and would not be anticipated to be met by existing employee levels
- 10.3.3** A casual employee shall be paid 125% of the hourly wage rate which a full-time employee would receive if performing the duties at the time. The 25% loading prescribed in this sub-clause is in lieu of public holidays not worked, all paid leave, other than LSL, and to compensate for the nature of casual work.
- 10.3.4** A casual employee must be engaged and paid for at least three (3) hours of work on each occasion they are required to attend work. Except as expressly provided for, all other provisions of this Agreement apply to casual Employees

10.4 Fixed Term Employee (Ref: VPS)

10.4.1 A Fixed Term employee shall be an employee who is engaged for a fixed term on either a full or part-time basis.

10.4.2 Subject to the exceptions in clause 10.4.4 fixed term appointments will be for a maximum of three years' duration.

10.4.3 The use of fixed term employment in all areas covered by this Agreement is limited to:

- (a) replacement of Employees during a temporary absence of another Employee, for example because:
 - (i) an Employee is on approved leave; or
 - (ii) the Employee is filling a vacancy, resulting from another Employee undertaking a temporary assignment or secondment; or
- (b) undertaking essential work during a peak demand period; or
- (c) undertaking work during emergency circumstances; or
- (d) undertaking a distinct and identifiable task involving specialised skills, which is funded for a specified period; or
- (e) a contract in relation to a training arrangement; or
- (f) temporarily filling a vacancy where:
 - (i) following an appropriate selection process, a suitable ongoing Employee is not available; or
 - (ii) the Employee is filling a vacant role whilst a review of the area is undertaken.

10.4.4 Fixed term appointments will be for a maximum of three years except:

- (a) in exceptional or unforeseen circumstances, or
- (b) where clause 10.4.3(f) applies, in which case the maximum duration will be 12 months, or
- (c) where the fixed term engagement arises backfilling another employee who is on Parental Leave (Clause 26), or
- (d) where the Employee is engaged to undertake a distinct and identifiable task involving specialised skills, which is funded for a specified period in accordance with clause 10.4.3(d) and the funding is payable for a period of more than 3 years and there are no reasonable prospects that the funding will be renewed after the end of that period, the Employer is permitted one extension beyond the three year maximum for a further period of no more than 12 months, or
- (e) for an Employee who is engaged under the contract in relation to a training arrangement of longer than three years duration.

10.4.5 If a fixed term appointment exceeds the limitations described in this clause the Employer will be required to make the Employee an offer of ongoing employment in accordance with clause 10.4.6.

10.4.6 Process for conversion where fixed term employment in the same or a substantially similar position exceeds three years duration

- (a) Notwithstanding clause 10.4.1 to 10.4.4 where the employer seeks to engage an employee beyond the limitations described in this clause, the employer is required to offer the employee ongoing employment, prior to the conclusion of the employee's fixed term contract, except in the following circumstances:
 - (i) there are reasonable business grounds not to do so (see clause 10.4.6(b), or
 - (ii) in exceptional or unforeseen circumstances.
- (b) For the purposes of clause 10.4.6(b)(i), and without limitation, reasonable business grounds include the following:
 - (i) there is no ongoing vacancy or funding for an ongoing position at the same classification or equivalent available in which to place the Employee to undertake the same or similar work that they were performing in the fixed term position; or
 - (ii) the Employee's position will cease to exist in the coming 12 months
- (c) Where an Employer is required to make an offer to convert to ongoing employment under this clause, the offer of ongoing employment must:
 - (i) be made in writing; and
 - (ii) be an offer to convert to ongoing employment at the same Classification or equivalent as the Employee's fixed term role; and
 - (iii) be consistent with the Employee's existing number of ordinary hours; and
 - (iv) be given to the Employee at least 21 days before their fixed term employment has reached its maximum duration under this clause.
- (d) In the event that the Employer is not required to make an offer under clause 10.4.6(a), the Employer must give written notice to the Employee. The notice must:
 - (i) advise the Employee that the Employer is not making an offer of ongoing employment; and
 - (ii) provide details of the reasons for not making the offer, including the reasonable business grounds and/or details of any exceptional or unforeseen or other circumstances that apply; and
 - (iii) be given to the Employee at least 21 days before their fixed term employment has reached its maximum duration under this clause.
- (e) If the Employer fails to make an offer of ongoing employment to an eligible fixed term Employee, the Employee may request in writing conversion to ongoing employment. Approval to convert to ongoing employment will not be withheld unless one of the exceptions in clause 10.4.4 applies and doing so would be consistent with clause 10.4.6(b)

- (f) An Employer will not seek to do any of the following with the intention of avoiding its conversion obligations under this clause:
 - (i) terminating employment, or
 - (ii) delaying the re-engagement of an Employee, or
 - (iii) not re-engaging an Employee but instead engage another person to perform the same or substantially similar work, or
 - (iv) change the nature of the work or tasks an Employee is asked to perform.

10.4.7 Transitional Arrangements – Fixed Term

- (a) The Parties agree that the arrangements clause 10.4 will apply to new or extended fixed term contracts entered into from the commencement of the Agreement.
- (b) The Parties agree that for the purposes of the fixed term conversion arrangements outlined in clause 10.4.6 new or extended contracts entered into on or after 6 December 2023, will count towards determining an Employee's eligibility for conversion under this clause.
- (c) For fixed term contracts entered into on or after 6 December 2023 but before the commencement of the Agreement, eligibility for conversion for eligible employees will arise at the point the contract is renewed or extended after the commencement of the Agreement.

10.4.8 A half yearly review of the positions held by agency hire staff shall be carried out by the consultative Committee, the union shall be advised of the outcome of each review.

10.5 Secure Employment

10.5.1 The Employer acknowledges the positive impact that secure employment has on employees and the provision of quality services to the Victorian community.

10.5.2 The Employer will give preference to ongoing forms of employment over casual and fixed term arrangements wherever possible

10.6 Job Share

10.6.1 An employee may with the approval of management elect to reduce their hours of work to the level and work pattern of their choice by job share arrangement provided 2 months written notice is given to Wimmera CMA. All benefits shall be paid pro-rata to part time employees.

10.6.2 In notification, the employee shall clearly indicate whether the job share is for a fixed period or permanent.

11. CASUAL CONVERSION

- 11.1** Subject to the operation of clause 11.2 the Employer must make an offer of ongoing employment to a currently employed casual Employee under this clause if the Employee has 12 months continuous service and has been employed on a regular and systematic basis for at least the last six months, and the Employee could continue to work as a full or part-time Employee (as the case may be) without significant adjustment. The offer of ongoing employment must be:
- (a) made in writing; and
 - (b) an offer to convert to ongoing employment at the same Classification or equivalent as the Employee's casual role; and
 - (c) consistent with the Employee's existing pattern of hours over the previous
 - (d) six months; and
 - (e) subject to the transitional arrangements in clause 11.7 given to the Employee within the period of 21 days after the Employee has reached 12 months continuous service.
- 11.2** Notwithstanding clause 11.1 the Employer is not required to make an offer under that clause to an Employee if there are reasonable business grounds not to do so (see clause 11.4) or if the Employee has been continuously employed for 12 months but has not been employed on a regular and systematic basis for at least the last six months.
- 11.3** In the event that the Employer is not required to make an offer under clause 11.1, the Employer must give written notice to the Employee. The notice must:
- (a) advise the Employee that the Employer is not making an offer of ongoing employment; and
 - (b) provide details of the reasons for not making the offer, including any reasonable business grounds; and
 - (c) be given to the Employee within the period of 21 days after their continuous service has reached 12 months duration.
- 11.4** For the purposes of clause 11.2 and without limitation, reasonable business grounds include the following:
- (a) that the Employee's position will cease to exist in the coming 12 month period; or
 - (b) that the hours of work which the Employee is required to perform will be significantly reduced in the coming 12 month period; or
 - (c) that there will be a significant change in either the days or times at which the Employee's hours of work are required to be performed in the coming 12 month period, which cannot be accommodated within the Employee's availability; or
 - (d) that making the offer would be inconsistent with the section 8 of the PAA (Public Sector Employment Principles).
- 11.5** Where the Employer makes an offer of ongoing employment to a casual Employee, the Employee must respond in writing within 21 days stating whether the Employee accepts or declines the offer. If the Employee does not provide a written response within 21 days, the Employee will be taken to have declined the offer.

11.6 If the Employer fails to make an offer of ongoing employment to an eligible casual Employee, the Employee may request in writing conversion to ongoing employment. Approval to convert to ongoing employment will not be withheld unless one of the exceptions in clause 11.211.2 applies.

11.7 Transitional Arrangements – Casual Conversion

The Employer will have six months from the commencement of the Agreement, to review the service history of existing casual Employees to determine if the casual conversion arrangements in clause 11.2 apply and if so, to take the necessary action in order to comply with those conversion requirements.

12. TERMS OF EMPLOYMENT

12.1 Employment Particulars

12.1.1 The Wimmera CMA shall provide the employee with a copy of the position description and other relevant employment information. The allocation of hours of work each day (spread) will be by agreement between the employee and the Wimmera CMA.

12.1.2 It shall be made clear at the outset on what basis the employee is employed i.e. Full-Time, Part-Time, Fixed Term or Casual employee.

(a) Employees on fixed term contracts including relieving staff shall receive written confirmation of commencement and termination dates.

12.1.3 Rates of pay for each banded classification will be as per Appendix A or by the negotiated SO employment agreement. Band /Classification definitions shall be as per Appendix B.

12.1.4 Termination of employment will be provided as per Clause 44 of this agreement.

12.1.5 Provided that a full-time employee who, works less than 76 hours a fortnight can have the balance taken from any accrued Time in Lieu entitlement. If there is no Time in Lieu entitlement accrued then the employee will be paid on an hourly basis for the fortnight. The hourly rate will be calculated by dividing the appropriate ordinary weekly rate by 38. The employee will also be advised by the Wimmera CMA of the reduced level of hours worked in the said fortnight and the requirement to work the required number of hours.

12.1.6 On the second occurrence of the situation stated in 12.1.5, the same basis of payment will occur. As well, the employee will be issued with a formal warning and the discipline clause 45 will be enacted. Subsequent weeks will be paid on an hourly basis. The hourly rate will be calculated by dividing the appropriate ordinary weekly rate by 38.

12.2 Probation - New Employee

12.2.1 The Wimmera CMA may appoint a new Employee with a probation period.

12.2.2 The probation period shall be a reasonable period having regard to the nature of the position but, subject to clause 12.2.3, shall be no more than 6 months.

12.2.3 If conduct or performance issues are identified during the probation period, the Wimmera CMA shall counsel the Employee during the probation period in relation to his or her conduct or performance and shall provide a written record of such counselling.

12.2.4 An Employee's employment may be terminated during the probation period by the Wimmera CMA by giving one weeks' notice, subject to the right to terminate an Employee's employment without notice or payment in lieu of notice if the Employee has committed any act of serious misconduct (as defined in the Fair Work Regulations).

12.2.5 Should the employee wish to tender their resignation during the probation period; the minimum notice required to be given is also 1 week.

12.2.6 Unless the employment is terminated earlier in accordance with clause 12.2.4, at the end of the probation period, the Wimmera CMA shall confirm the Employee's appointment in writing or, in the event that the Employee's conduct or performance during the probation period is unsatisfactory, terminate the employment by the giving of one weeks notice.

12.2.7 If the Wimmera CMA has allowed a probationary period to expire without counselling or assessment, then it will be considered as the Employee has satisfactorily passed their probation period.

12.3 Outside Employment / Conflict of Interest

12.3.1 In complying with *Public Administration Act 2004* all staff are required to seek the written approval of the CEO before undertaking work employment outside of their standard public sector duties.

12.3.2 Staff are required to declare any actual, perceived or potential conflicts between public duty and private interests which could influence the performance of official duties and responsibilities. A conflict of interest can arise from avoiding personal losses as well as gaining personal advantage.

12.3.3 New employees are to be made aware of this requirement before being offered a position with Wimmera CMA.

12.4 Abandonment of employment

12.4.1 An employee who has been absent for a period of ten working days, without the consent of Wimmera CMA, and during such time has not established to the satisfaction of Wimmera CMA that they were absent for reasonable cause, will be deemed to have abandoned their employment without notice. Abandonment of employment constitutes ground for termination by the Employer if the employment has not otherwise ended.

12.4.2 Wimmera CMA will make a reasonable effort to contact the employee before the contract is terminated under this subclause

12.4.3 Termination in such circumstances (clause 12.4.1) will operate as from the date of the last attendance at work or the last days absence in response of which consent was granted, whichever is the later.

12.4.4 If the employee's employment is terminated by the Wimmera CMA, the Wimmera CMA will provide to the employee notice of termination in accordance with section 117 of the *Fair Work Act 2009* (Cth).

13. ANNUAL WORKPLAN REVIEW PROCESS

13.1 An annual review will be undertaken by the Wimmera CMA for all full time and part time employees based upon the agreed work plans.

13.2 Employees will be assessed annually using their annual work plan; with one-off bonuses awarded (pro-rata) up to 3.5% of their annual salary (pro-rata) for staff who exceed the requirements of the work plan.

Satisfactory assessment against the organisational values and behaviours is required before staff will be eligible for any bonus.

Criteria assessed will then include;

- (a) The acquisition and satisfactory utilisation of new or enhanced skills if required by the Wimmera CMA identified through the annual work plan review process; and
- (b) The meeting of established work objectives as determined in accordance with annual work plans; and
- (c) Satisfactory service over the preceding twelve months meeting the agreed expectations; and

13.3 Staff returning from extended leave; or new staff who have successfully completed their probationary period are eligible for a pro-rata bonus.

13.4 Bonuses will be paid upon hours worked for the applicable period (pro-rata).

13.5 Bonus's may be converted to the purchase of annual leave in lieu of a cash payment. (The calculation based upon dividing the awarded bonus by the employee's hourly rate).

13.5.1 Conversion to annual leave must result in a leave balance that complies with clause 36.3.4 of this agreement;

13.5.2 Employees can request a combination of leave and cash bonus

13.5.3 The conversion of the bonus must be agreed to by both the employee and employer

14. SALARY LEVELS

14.1 The relevant rates of pay that are detailed in Appendix A – Classification and Salary Ranges.

14.2 During the term of this agreement the employees will be entitled to an annual wage increase of 3.0% each year that will take effect from 7th August 2024.

Date of Effect	Percentage Increase
7 th August 2024	3.0%
7 th August 2025	3.0%
7 th August 2026	3.0%
7 th August 2027	3.0%

The maximum rate of pay paid under this agreement, will be a total remuneration package under the annual PEER minimum threshold (see Maximum rates of pay clause 16).

14.3 Upon receipt of any updates in relation to the PEER minimum threshold; or changes to the PEER policy this will be communicated to all Senior Managers

- 14.4 Lump Sum Payment** - Upon approval by the FWC, and this Agreement becoming operative, each employee engaged as at 5th August 2024 (in-principle agreement), will be entitled to a one-off cash payment. This amount has been calculated at \$5,047 per full-time equivalent (FTE) and is pro-rata for part-time and casual employees.
- 14.5** This payment will be made in line with clause 14.2; and be paid as soon as reasonably practicable after the Agreement commences operation.

15. MINIMUM RATES OF PAY

15.1 Senior Officers

- 15.1.1** An employee classified as a Senior Officer is an employee whose duties and responsibilities exceed those specified in the definitions for Bands 1 to 5 in Appendix B but are below the maximum rate of pay in accordance with clause 16.1.

15.2 Senior Managers

- 15.2.1** Senior Managers will be paid at the minimum rate of SEO in this agreement.
- 15.2.2** A Senior Manager's pay shall be determined by the CEO, taking into consideration the market value of such a position.
- 15.2.3** Senior Managers will be entitled to the agreed annual percentage increase as documented in Appendix A providing that their annual TRP remains under the maximum rate of pay in accordance with clause 16.1.
- 15.2.4** A separate agreement will be signed by Senior Managers and the CEO outlining any variations to the agreement and will include;
- (a) annual salary
 - (b) any salary packaging arrangements
 - (c) performance reviews.

16. MAXIMUM RATE OF PAY

- 16.1** The maximum rate of pay to be paid under this agreement is the minimum TRP (total remuneration package) as set annually by PEERS.
- 16.2** Staff whose TRP exceeds the PEER threshold; or would exceed the threshold by applying a salary increase; will not receive a pay increase in accordance with this agreement until they fall below the PEER TRP threshold.

17. PAYMENT OF WAGES

17.1 Process for payment

- 17.1.1** All wages shall be paid fortnightly by Electronic Funds Transfer (EFT).
- 17.1.2** Wages shall be paid to the employee on the same day of each fortnight except where such day falls on a public holiday in which case payment shall be made on the previous working day.
- 17.1.3** A record shall be kept by the Wimmera CMA containing all relevant wage particulars.
- 17.1.4** Where an employee's services are terminated in accordance with the termination of employment provisions of this agreement, all moneys due to the employee pursuant to this agreement shall be paid within three working days of the effective termination date.

17.2 Calculation of Salary

17.2.1 Calculation of salary Full-time employees:

The fortnightly pay shall be calculated as follows;

$$\text{Fortnightly pay} = \text{Annual salary} \div 1976 \text{ hours} \times 76$$

$$\text{Hourly rate} = \text{Annual salary} \div 1976 \text{ hours}$$

17.2.2 Calculation of fortnightly salary for Part-time employees;

The fortnightly pay shall be calculated as follows;

$$\text{Fortnightly pay} = \text{Annual salary} \div 1976 \text{ hours} \times \text{part time fortnightly hours of work}$$

17.2.3 Calculation of hourly rate for Casual employees

- (a) The hourly rate shall be determined by dividing the annual salary for a full-time employee by 1976 and multiplying by 125%.

18. ALLOWANCES / REIMBURSEMENTS

Reference should be made to the current ATO rates for the maximum limits for reimbursement under clause 18.1 and 18.2.

18.1 Meal Expense Claims

18.1.1 An employee will be eligible for reimbursement of meal expenses approved by their Senior Manager under the following conditions;

- (a) Breakfast expense if departing before 7:00 am and returning after 9:30 am
- (b) Lunch expense when following an overnight stay or travel outside the catchment
- (c) Dinner expense where an employee is required to leave before 5:00 pm and is unable to return until after 8:00 pm.

18.1.2 All meal related expenses reasonably incurred by the employee whose duties necessitate travelling on Wimmera CMA's behalf will be reimbursed upon approval. Re-imbursement for any business expenses will be paid upon provision of an expense claim form with supporting documentation of the expense, and signed by the employees Senior Manager.

18.2 Accommodation, out of pocket and Motor Vehicle

18.2.1 Where an employee is required to travel on duty involving overnight accommodation, the employee shall be entitled to reimbursement of agreed accommodation expense including meals and parking.

18.2.2 Re-imbursement for any business expenses will be paid upon provision of an expense claim form with supporting documentation of the expense.

18.2.3 Where an employee is required to use their private motor vehicle in the course of their employment, the employee will be reimbursed for kilometre costs, according to the current ATO rates.

18.2.4 The employee must obtain prior approval of the Wimmera CMA before using their private motor vehicle during the course of their employment. Following use, the Employee must submit a claim stating the date, the purpose of the trip, the number of kilometres travelled and the type of vehicle used.

18.2.5 Parking expenses will be reimbursed in full based on presentation of parking dockets and receipts.

18.2.6 Vehicle infringements and Parking Fines will be the responsibility of the employee incurring the fine.

18.3 Incidental Expenses

18.3.1 Where an employee is required to stay overnight for work related purposes, they will have access to claim a maximum reimbursement of up to \$10 per day commencing after the first overnight stay upon receipt of a signed claim form with receipts attached for incidental expenses.

18.4 Active commitment

To encourage staff to be more active outside the workplace and have a greater level of wellbeing, Wimmera CMA will contribute towards this outcome through organisation wide activities to be coordinated by Wimmera CMA OH&S Committee or Wellbeing committee.

19. HIGHER DUTIES

19.1 Higher duties are payable for work performed in a higher-level classification.

19.2 Performance of higher duties shall be regarded as part of the overall process of employee development and skill enhancement. Higher duties shall be worked to provide short-term replacement to cover periods of absence of the position incumbent. No payment is applicable for higher duties of less than five (5) consecutive working days duration.

19.3 Subject to clause 19.2, higher duties will increase the relieving employees' rate of pay by an appropriate amount to be determined by Wimmera CMA in consultation with the employee (in terms of the assignments /higher duties policy). The amount will be payable for the duration of the performance of the higher graded work at least at the lower level of the position's banded classification.

19.4 Employees appointed to the role of Acting Manager by the CEO are to be paid at a rate determined by the CEO (based upon responsibilities, and minimum 19.2)

19.5 Higher Duty payments shall not apply to an employee undertaking recognised on the job training and/or skill development in the classification immediately above their substantive classification.

20. ACCIDENT PAY

20.1 The conditions under which an employee qualifies for accident pay will be as prescribed below:

20.1.1 Subject to clause 0, an employee who is absent from duty as a result of sustaining an injury in respect of which the employee is entitled to weekly payments of compensation under the *Workplace Injury Rehabilitation and Compensation Act 2013*, will receive make-up pay equal to the employee's ordinary rate of pay less the amount of the weekly payments of compensation (make-up pay).

20.1.2 Make-up pay ceases in relation to any one injury (including a recurrence or aggravation of the injury) when:

- (a) the employee has been absent from work for either a continuous or an aggregate period of 52 weeks
- (b) the employee receives a lump sum in redemption of weekly payments of compensation; or
- (c) the employee's employment is lawfully terminated.

20.1.3 Accident pay under clause 20.1.1 will cease when the employee has been absent from work for either a continuous or an aggregate period of 52 weeks

20.1.4 The liability of the Wimmera CMA to pay accident pay in accordance with this clause will arise as at the date of the injury or accident in respect of which compensation is payable and the termination of the employee's employment for any reason during the period of any incapacity will in no way affect the liability of the Wimmera CMA to pay accident pay as provided in this clause.

20.1.5 In the event that the employee receives a lump sum in redemption of weekly payments the liability of the Wimmera CMA to pay accident pay will cease from the date of such redemption.

20.2 Notwithstanding the provisions of this clause;

20.2.1 the liability to pay accident make-up pay to casual, temporary or employees who retire, will cease at the expiration of such engagement or 52 weeks whichever is the lesser period.

20.2.2 where an employee had given notice of their intention to retire and is injured prior to the notified date of retirement, the liability to pay accident make-up pay will cease at the date on which the employee was due to retire or 52 weeks whichever is the lesser period.

21. HOURS OF WORK

21.1 A standard 38 hours week is to be worked between 7:00 a.m. and 7:00 p.m. Monday to Friday inclusive.

21.2 A standard day shall mean 7.6 hours.

21.3 Part time employees should refer to the terms of their employment agreement and submit an agreed work pattern form with their manager.

21.4 An employee's ordinary day cannot exceed 8.5 hours in any one day. This does not prevent an employee from working additional hours where required.

22. RIGHT TO DISCONNECT (VPS)

22.1 The Right to Disconnect refers to an Employee's right to disengage from work and refrain from engaging in work-related communications and activities, such as emails, telephone calls or other messages, outside of the Employee's working hours or during periods of leave.

22.2 The Right to Disconnect has four main elements:

- (a) The Employer must respect Employee's periods of leave.
- (b) An Employee must not be expected to routinely perform work outside of the Employee's working hours, other than in an emergency, incident response situation or in relation to genuine welfare matters.

- (c) An Employee will not be penalised or otherwise disadvantaged for refusing to attend to work matters outside of the Employee's working hours or their agreed ordinary hours under a flexible arrangement, unless their refusal is unreasonable in the circumstances.
- (d) Subject to sub-clause 22.2 and 22.2(c), an Employee is not required to monitor, read or respond to emails, messages or phone calls outside of their working hours unless the Employee is required by the Employer to be on-stand by or have been directed by the Employer to perform overtime.

22.3 Without limiting the matters that may be taken into account in determining whether a refusal is reasonable, the following must be taken into account:

- (a) the reason for the contact or attempted contact,
- (b) how the contact or attempted contact is made and the level of disruption the contact or attempted contact causes the Employee,
- (c) whether the Employee is compensated to be available to be contacted or to perform work outside of their working hours, or for working additional hours outside of the spread of ordinary hours or their agreed ordinary hours under a flexible arrangement,
- (d) the nature and seniority of the Employee's role and the Employee's level of responsibility, and
- (e) the Employee's personal circumstances (including family or caring responsibilities).

22.4 There may be occasions when it will be reasonably necessary for an Employer to contact an Employee outside of the working hours, including but not limited to:

- (a) ascertaining availability for rosters,
- (b) requests to fill in at short notice for unplanned absences of other Employees,
- (c) where unforeseeable circumstances arise,
- (d) for genuine Employee welfare matters, or in an emergency,
- (e) and/or where business and operational reasons require contact outside of working hours.

For the avoidance of doubt, an Employee may not be required to respond to these matters provided the refusal to respond is reasonable having regard to the matters in clause 22.3.

22.5 This clause is to be read in conjunction with the Parties' commitment to support flexible ways of working. Subject to an Employee working the actual days and hours of work established between the Employer and the Employee at the date of employment or as subsequently altered by agreement, this clause does not prevent Employees from working within the scope of their own flexible work arrangements, which may extend to working, by agreement, outside of the span of hours set out in Clause 22.1, and in accordance with an Individual Flexibility Arrangement under Clause 6.

22.6 Nothing in this clause prevents the Employer from requiring an Employee to perform reasonable additional hours, overtime, a period of standby or be recalled to duty outside the span of hours in accordance with the terms of this Agreement.

22.7 Without limiting or overriding any rights or obligations under clause 7 (Resolution of Disputes), the parties must first attempt to resolve a dispute about the operation of this clause at the workplace level by discussing the matter. A dispute about the operation of this clause may arise because:

- (a) the Employee has refused to monitor, read or respond to contact or attempted contact under this clause and the Employer believes that the refusal is unreasonable, or
- (b) the Employer has asserted their belief that the refusal was unreasonable but the Employee believes the refusal was not unreasonable.

22.8 If the dispute cannot be resolved at the workplace level, a party to the dispute may apply to the Fair Work Commission to do either or both of the following:

- (a) make an order under section 333P of the *Fair Work Act 2009*;
- (b) otherwise deal with the dispute.

23. REST BREAKS / MEAL BREAKS

23.1 Every employee will be allowed without deduction of pay, a break of twenty minutes per day to be taken during the working day. Provided that by agreement between the Wimmera CMA and employee, the break may be taken at another time or other times, but not more than two separate periods.

23.2 A daily unpaid meal break of not more than one hour and not less than 30 minutes will be taken during a work shift.

23.3 By mutual agreement, the breaks may be altered, providing that an employee may not work for more than 5 consecutive hours without a break.

23.4 Where a part-time or casual works before a recognised tea break and continues to work after such break, then the employee shall be entitled to such a tea break.

24. EMERGENCY RESPONSE

In an emergency event; namely the outbreak of a bushfire or flood; Wimmera CMA may be called upon to support the region's emergency services.

24.1 Where an Australian Integrated Incident Management System (AIIMS) incident control centre is in place, Wimmera CMA staff may be called in to support the control centre and be under their direction.

24.2 Staff may be requested due to their specific skills to work in support roles, but can request to be excused on the basis of;

- (a) Risk to employee's health and safety
- (b) The employee's personal circumstances including any family responsibilities
- (c) The needs of the workplace
- (d) Any other relevant matter.

24.3 Where staff have been requested by their Manager or CEO to work in accordance with clause 24.1; and staff are under the control of the AIIMS control centre; conditions will be in accordance with Appendix C – Emergency Work.

24.4 Where clause 24.1, 24.3 and Appendix C – Emergency Work applies; and the clauses of this agreement are inconsistent; Appendix C will apply.

25. PENALTY RATES AND TIME IN LIEU

25.1 Overtime

25.1.1 The Wimmera CMA may require any employee to work reasonable overtime from time to time.

25.1.2 No overtime will be worked by an employee without prior approval of the Senior Manager.

25.1.3 An employee may refuse to work overtime in circumstances where the working of such overtime would result in the employee working hours which are unreasonable having regard to;

- Any risk to employee's health & safety
- The employee's personal circumstances including any family responsibilities
- The need of the workplace or enterprise
- The notice (if any) given by the employer of the overtime and by the employee of his or her intention to refuse it; and
- Any other relevant matter.

25.1.4 Overtime hours worked may be taken as time in lieu, subject to management agreement.

25.1.5 Senior Executive Officers and Senior Managers will not be paid overtime, as all reasonable requests for extra hours are included in the negotiated salary packages.

25.2 Calculation of Overtime

25.2.1 Except as otherwise provided, all approved overtime worked in excess of ordinary hours or outside the spread of ordinary hours of work shall be paid for at one and a half times the ordinary rate of pay for the first two hours and then at twice the ordinary rate of pay thereafter on Monday to Saturday inclusive.

25.2.2 A rate of double time will be payable on Sunday. Payment at twice the prescribed ordinary rate shall continue until the completion of the overtime work.

25.2.3 If the employee works overtime on a Saturday or on a Sunday the employee shall be afforded at least three hours work or shall be paid for three hours at the appropriate overtime rate.

25.3 Computation of overtime under this Clause

25.3.1 Overtime shall be based on the ordinary rate of pay that the employee is receiving at the time the overtime is worked.

25.3.2 To determine the ordinary hourly rate of pay the annual salary shall be divided by one thousand nine hundred and seventy-six (1976).

25.3.3 Each day's work shall stand alone except where overtime is continuous with the previous day.

25.3.4 A day shall mean all time between midnight on any one-day and midnight on the succeeding day.

25.3.5 Overtime shall be payable outside of ordinary hours on any day.

25.4 Payment for Overtime Worked

- 25.4.1** Payment for overtime worked shall be made as soon as practicable after the end of the fortnightly pay period during which the overtime was worked.
- 25.4.2** Where an employee is required to work approved overtime which is continuous with normal working hours and is going to exceed 2 hours in duration, the employee will be entitled to a rest period of 30 minutes or a payment of a meal allowance in lieu of the rest period.
- 25.4.3** Where the employee has not had at least 8 consecutive hours off duty after working a minimum of 2 hours in one 8 hour block; which is outside the employees ordinary hours; the employee shall be released from duty without loss of pay until such time as they have had 8 consecutive hours off duty, or alternatively where directed to work will be paid double the ordinary rate of pay until such time that they are released from duty and then be entitled to be absent until they have had 8 consecutive hours off duty without loss of pay.

25.5 Standby Allowance

- 25.5.1** An employee who is required by the employer as part of their duties to be available to respond where a need has been identified in advance, (this may include and be not limited to; the result of weather warnings; following a weather event or a specific incident) which is outside their normal hours of work; to not proceed where they cannot respond to a telephone call; or access to relevant electronic communications; and available to attend the office when required; will receive an allowance as per clause 25.5.8;
- 25.5.2** An employee will be appointed by their Manager; who will also establish the level and time frame that the employee will be paid the allowance prior to the shift commencing. All overtime hours worked in association with being on standby will require approval by a Manager.
- 25.5.3** The standby allowances are paid for being available to perform duty and will include initial limited response to a telephone call or email, as long as the subject of the telephone call or email does not require further following up.
- 25.5.4** The allowance paid will be for any one period of time.
- 25.5.5** All work after the initial limited response will be remunerated as overtime; and rounded up to the nearest 15 minute block.
- 25.5.6** Employees have the option of nominating to take time in lieu instead of overtime.
- 25.5.7** Where an employee is required to return to the office to coordinate a response; they will be paid for a minimum of 3 hours.
- 25.5.8** Applicable standby rate

Effective Date	Current	07.08.24	07.08.25	07.08.26	07.08.27
Rate per night (5 pm – 8:30 am)	\$57.45	\$59.17	\$60.95	\$62.78	\$64.66
Rate per day and night (8:30 am-8:30 am)	\$114.93	\$118.38	\$121.93	\$125.59	\$129.35

25.6 Recall to Work

- 25.6.1** If the employee is recalled to work overtime after leaving the place of employment (whether notified before or after leaving work), the employee shall be paid a minimum of 3 hours work at the appropriate overtime rate.
- 25.6.2** In such circumstances, time reasonably spent in getting to and from work shall be regarded as time worked.
- 25.6.3** Sub-clause 25.6.225.6.2 will not apply when the overtime is continuous (subject to a reasonable meal break) with the completion or commencement of ordinary hours.
- 25.6.4** This clause (25.6.1) shall not apply in cases where it is customary for the employee to return to Wimmera CMA's premises to perform a specific pre-arranged job outside the normal working hours. Time worked in these circumstances shall not be regarded as overtime for the purposes of clause 25.5.1 when the actual time worked is less than one hour on each such occasion.

25.7 Payment for Work on a Public Holiday

- 25.7.1** All approved time worked between what would be the normal starting time and the normal finishing time on a public holiday shall be paid for at time and a half the ordinary rate in addition to the employee's normal salary for the day. For all time worked outside such ordinary working time (including a Public Holiday falling on a Saturday or Sunday) shall be paid for at double time and a half.
- 25.7.2** The employee required to work on a public holiday shall be afforded at least three hours work or paid for three hours at the rate of double time and a half.

25.8 Time in lieu

- 25.8.1** This clause addresses the issue of additional time worked by employees above the average of 38 hours per week or pro rata for part time employees. Providing Time-in Lieu (TIL) for additional hours worked is one method for ensuring the employee is not disadvantaged for undertaking legitimate work activities which result in working longer than the prescribed minimum of 38 hours per week or pro rata for part time employees.

Time not included as TIL;

- * Overnight when staying away where there is no work related activities; and
- * Unauthorised work over and above 152 hours in any four week period.

Time included as TIL;

- * Travelling for business purposes; and
- * Compulsory and/or specific work activities over and above a normal day

- 25.8.2** The employee by agreement with Wimmera CMA may be granted time off in lieu of overtime on the basis of an hour off for each hour worked.
- 25.8.3** Up to three days TIL can be accrued at one time and is to be taken as soon as is practicable. TIL can be taken for any period between one hour and three days and must be authorised by the relevant Senior Manager prior to the TIL being taken.
- 25.8.4** All TIL must be authorised and recorded in an employee's personal calendar prior to taking leave.
- 25.8.5** No time in lieu may be accrued over and above the cap of 22.8 hours (at the end of any pay fortnight) without the prior written authorisation from the employee's Senior Manager.

- 25.8.6** With the approval of the employees manager, staff can manage their hours across the fortnight (within the guidelines of clause 21)
- 25.8.7** TIL balances will be provided to all employees on a fortnightly basis.
- 25.8.8** The employee may be requested to keep a diary of TIL and tasks associated with work performed. Where possible the employee must forecast periods of high workload with the Senior Manager so that effective work arrangements can be made.

26. PARENTAL LEAVE

26.1 Scope

- 26.1.1** Subject to the terms of this clause employees are entitled to paid and unpaid primary carer, secondary carer and adoption leave and to work part-time in connection with the birth or adoption of a child.
- 26.1.2** The provisions of this clause apply to full-time, part-time and eligible casual employees, but do not apply to other casual employees.
- 26.1.3** An eligible casual employee means a casual employee;
 - (a) employed by the employer on a regular and systematic basis for a sequence of periods of employment of at least 12 months; and
 - (b) who has, but for the pregnancy or the decision to adopt, a reasonable expectation of ongoing employment.
- 26.1.4** For the purposes of this clause, continuous service is work for the employer on a regular and systematic basis (including any period of authorised leave or absence).
- 26.1.5** The employer must not fail to re-engage a casual employee because:
 - (a) the employee or employee's spouse is pregnant; or
 - (b) the employee is or has been immediately absent on parental leave.
- 26.1.6** The rights of the employer in relation to engagement and re-engagement of casual employees are not affected, other than in accordance with this clause.

26.2 Definitions

- 26.2.1** For the purpose of this clause child means a child of the employee under school age except for adoption of an eligible child where 'eligible child' means a person under the age of 16 years who is placed with the employee for the purposes of adoption, other than a child or step-child of the employee or of the spouse of the employee or a child who has previously lived continuously with the employee for a period of six months or more.
- 26.2.2** For the purposes of this clause, spouse includes a de facto spouse, or former spouse or former de facto spouse. The employee's "de facto spouse" means a person who lives with the employee as husband, wife or same sex partner on a bona fide domestic basis, although not legally married to the employee.

26.3 Basic entitlement

- 26.3.1** Employees who have, or will have, completed at least twelve months continuous service, are entitled to a combined total of 52 weeks paid and unpaid parental leave on a shared basis in relation to the birth or adoption of their child.

26.3.2 Only one parent can receive Primary Caregiver parental leave entitlements in respect to the birth or adoption of their Child. An Employee cannot receive Primary Caregiver parental leave entitlements:

- (i) if their Spouse is, or will be, the Primary Caregiver at the time of the birth or adoption of their Child, or
- (ii) if their Spouse has received, or will receive, primary caregiver entitlements, or a similar entitlement, from their employer; or
- (iii) if the Employee has received, or will receive, Secondary Caregiver parental leave entitlements in relation to their Child.

26.3.3 Only one parent can receive Secondary Caregiver parental leave entitlements in respect to the birth or adoption of their Child.

26.3.4 An Employee cannot receive Secondary Caregiver parental leave entitlements where the Employee has received Primary Caregiver parental leave entitlements in relation to their Child.

26.3.5 An employee who does not satisfy the qualifying service requirement for the paid components of leave, or an employee who is an eligible casual employee, shall be entitled to leave without pay for a period not exceeding 52 weeks.

26.3.6 Leave available is summarised in the following table:

	Paid Leave	Unpaid Leave	Total
Primary Caregiver			
More than 12 months service	14 weeks	Up to 38 weeks	52 weeks
Less than 12 months service	0	Up to 52 weeks	52 weeks
Eligible Casual employee	0	Up to 52 weeks	52 weeks
Secondary Caregiver			
More than 12 months service	3 weeks	1 week	52 weeks
If taking over primary care	3 weeks	Up to 49 weeks	52 weeks
Less than 12 months service	0	Up to 52 weeks	52 weeks
Eligible Casual employee	0	Up to 52 weeks	52 weeks
Adoption Leave			
Primary Carer	6 weeks	36 weeks	52 weeks
Secondary Carer	3 weeks	49 weeks	52 weeks
Prenatal Care			
Pregnant employee	38 hours		
Spouse	7.6 hours		

26.3.7 Superannuation will be payable on paid Wimmera CMA primary, secondary and adoption leave as per clause 0.

26.3.8 Commonwealth Scheme Payment - the paid parental leave entitlement outlined within this clause are in addition to payments available under the Commonwealth Parental Scheme.

26.4 Employee Couple – Concurrent Leave

26.4.1 Parental leave is to be available to only one parent at a time, in a single unbroken period, except that both parents may simultaneously take:

- (a) in the case of the two week's paid secondary carer leave an employee shall be entitled to a total of 10 days (which need not be taken consecutively) and up to 50 weeks unpaid leave in connection with the birth of a child for whom they have accepted responsibility which may be commenced 1 week prior to the expected date of birth; and
- (b) in the case of short adoption leave for the secondary care giver, one weeks paid leave which may be commenced at the time of placement.

26.4.2 Subject to 26.4.1(a), the total concurrent leave must be for a period of up to eight weeks. Where the employer agrees, the employee may start concurrent leave earlier or end concurrent leave later than provided for in 26.4.1.

26.5 IVF Treatment leave

26.5.1 In addition to the primary carer leave and personal/carer's leave provisions of the Agreement and Pre-natal leave.

26.5.2 An employee who presents a medical certificate from a doctor stating they are undertaking IVF treatment will have access to paid leave totalling 38 hours per pregnancy to enable the employee to attend the routine medical appointments associated with IVF treatment.

26.6 Pre- Natal Leave

26.6.1 In addition to the primary carer leave and personal/carer's leave provisions of the Agreement,

- (a) An employee who presents a medical certificate from a doctor stating they are pregnant will have access to paid leave totalling 38 hours per pregnancy to enable the employee to attend the routine medical appointments associated with the pregnancy
- (b) An employee who presents a certificate of attendance with an adoption agency along with formal advice of intention to adopt, will have access to paid leave totalling 38 hours to enable the employee to attend medical appointments and interviews routinely associated with the adoption of a child.

26.6.2 The work unit will be flexible enough to allow such employees the ability to leave work and return on the same day.

26.6.3 On presentation of a medical certificate stating such, any employee who has a partner who meets criteria under 26.6.1(a), or 26.6.1(b) will be eligible to access paid leave under this clause for a period equal to a total of one ordinary day (7.6 hours). A medical certificate must cover each absence, or for 26.6.1(b) a certificate of attendance.

26.7 Primary carer leave

26.7.1 Primary Caregiver means the person who takes primary responsibility for the care of a newborn or newly adopted Child. The Primary Caregiver is the person who meets the Child's physical needs more than anyone else. Only one person can be a Child's Primary Caregiver on a particular day.

26.7.2 An employee must provide notice to the Wimmera CMA in advance of the expected date of commencement of parental leave. The notice requirements are:

- (a) of the expected date of birth (included in a certificate from a registered medical practitioner stating that the employee is pregnant) - at least ten weeks
- (b) of the date on which the employee proposes to commence primary carer leave and the period of leave to be taken - at least four weeks.

26.7.3 When the employee gives notice under Clause 26.7.1(a) hereof the employee must also provide a statutory declaration stating particulars of any period of secondary carer leave sought or taken by their spouse and that for the period of primary carer leave they will not engage in any conduct inconsistent with their contract of employment.

26.7.4 An employee will not be in breach of this clause if failure to give the stipulated notice is occasioned by birth occurring earlier than the presumed date.

26.7.5 Subject to Clause 26.3.1 hereof and unless agreed otherwise between the Wimmera CMA and employee, an employee may commence parental leave at any time within six weeks immediately prior to the expected date of birth.

26.7.6 Where an employee continues to work within the six week period immediately prior to the expected date of birth of the child or is on paid leave under Clause 26.13.2, the employer may require the employee to provide a certificate from a medical practitioner or registered midwife stating that they are fit to work in their present position. The employer may require the employee to start primary carer leave if the employee:

- (a) does not give the employer the requested certificate within 7 days after the request; or
- (b) within 7 days after the request for the certificate, gives the employer the medical certificate stating that the employee is unfit to work.

26.8 Sick Leave and special maternity leave

26.8.1 Where the pregnancy of an employee not then on parental leave terminates other than by the birth of a living child, the employee may take leave for such periods as a registered medical practitioner or registered midwife certifies as necessary, as follows:

- (a) Where the pregnancy terminates during the first 20 weeks, during the certified period/s the employee is entitled to access any paid and/or unpaid personal leave entitlements in accordance with the relevant personal leave provisions
- (b) Where the pregnancy terminates after the completion of 20 weeks, during the certified period/s the employee is entitled to paid special maternity leave not exceeding the amount of paid maternity leave available under Clause 26.3.1, and thereafter, to unpaid special maternity leave.

26.8.2 Where an employee not then on maternity leave is suffering from an illness whether related or not to pregnancy an employee may take any paid personal leave to which they are entitled and/or unpaid personal leave in accordance with the relevant personal leave provisions.

26.8.3 Where leave is granted under Clause 26.7.5 hereof, during the period of leave an employee may return to work at any time, as agreed between the Wimmera CMA and the employee provided that time does not exceed four weeks from the recommencement date desired by the employee.

26.9 Secondary Carer leave

26.9.1 Secondary Carer - means a person who has parental responsibility for the Child but is not the Primary Caregiver.

26.9.2 An employee will provide to the Wimmera CMA at least ten weeks prior to each proposed period of secondary carer leave, with;

- (a) a certificate from a registered medical practitioner which names their spouse, states that they are pregnant and the expected date of confinement, or states the date on which the birth took place; and
- (b) written notification of the dates on which they propose to start and finish the period of secondary carer leave; and
- (c) a statutory declaration stating;
 - except in relation to leave taken simultaneously with the child's mother under Clause 26.4.1(a) or Clause 26.11.1(a), that they will take the period of secondary carer leave to become the primary care-giver of a child;
 - particulars of any period of parental leave sought or taken by their spouse; and
 - that for the period of secondary carer leave they will not engage in any conduct inconsistent with their contract of employment.

26.9.3 The employee will not be in breach of Clause 26.9.1 hereof if the failure to give the required period of notice is because of the birth occurring earlier than expected, the death of the mother of the child, or other compelling circumstances.

26.9.4 Secondary carer leave shall not be granted in respect of a pregnancy that terminates more than twenty weeks before the expected date of the birth of the child.

26.10 Adoption leave

26.10.1 The employee shall be required to provide the employer with written notice of their intention to apply for adoption leave as soon as is reasonably practicable after receiving a placement approval notice from an adoption agency or other appropriate body.

26.10.2 The employee must give written notice of the day when the placement with the employee is expected to start as soon as possible after receiving a placement notice indicating the expected placement day.

26.10.3 The employee must give the following written notice of the first and last days of any period of adoption leave they intend to apply for because of the placement;

- (a) Where a placement notice is received within the period of 8 weeks after receiving the placement approval notice – before the end of that 8 week period; or
- (b) Where a placement notice is received after the end of the period of 8 weeks after receiving the placement approval notice – as soon as reasonably practicable after receiving the placement notice.

26.10.4 As a general rule, the employee must make application for leave to the employer at least ten weeks in advance of the date of commencement of long adoption leave and the period of leave to be taken, or 14 days in advance for short adoption leave. An employee may commence adoption leave prior to providing such notice, where through circumstances beyond the control of the employee, the adoption of a child takes place earlier.

26.10.5 Before commencing adoption leave, an employee will provide the employer with a statement from an adoption agency of the day when the placement is expected to start and a statutory declaration stating;

- (a) that the child is an eligible child, whether the employee is taking short or long adoption leave or both and the particulars of any other authorised leave to be taken because of the placement
- (b) except in relation to leave taken simultaneously with the child's other adoptive parent under clause 26.4.1 or clause 26.11.1(a) that the employee is seeking adoption leave to become the primary care-giver of the child
- (c) particulars of any period of adoption leave sought or taken by the employee's spouse; and
- (d) that for the period of adoption leave the employee will not engage in any conduct inconsistent with their contract of employment.

26.10.6 An employee must provide the employer with confirmation from the adoption agency of the start of the placement.

26.10.7 Where the placement of child for adoption with an employee does not proceed or continue, the employee will notify the employer immediately and the employer will nominate a time not exceeding four weeks from receipt of notification for the employee's return to work.

26.10.8 An employee will not be in breach of this clause as a consequence of failure to give the stipulated periods of notice if such failure results from a requirement of an adoption agency to accept earlier or later placement of a child, the death of a spouse, or other compelling circumstances.

26.10.9 An employee seeking to adopt a child is, on the production of satisfactory evidence if required, entitled to unpaid leave for the purpose of attending any compulsory interviews or examinations as are necessary as part of the adoption procedure. The employee and the employer should agree on the length of the unpaid leave. Where agreement cannot be reached, the employee is entitled to take up to two days unpaid leave. Where paid leave is available to the employee, the employer may require the employee to take such leave instead.

26.11 Right to request

26.11.1 An employee entitled to parental leave pursuant to the provisions of Clause 26.3.1 may request the Wimmera CMA to allow the employee:

- (a) to extend the period of simultaneous unpaid parental leave provided for in Clause 26.4.1(a) up to a maximum of eight weeks;
- (b) to extend the period of unpaid parental leave provided for in Clause 26.3.1 by a further continuous period of leave not exceeding 12 months;
- (c) to return from a period of parental leave on a part-time basis until
 - (i) the child reaches school age;
 - (ii) or a child with a disability turns the age of 18 years;

to assist the employee in reconciling work and parental responsibilities.

26.11.2 The Wimmera CMA shall consider the request having regard to the employee's circumstances and, provided the request is genuinely based on the employee's parental responsibilities, may only refuse the request on reasonable grounds related to the effect on the workplace or the Wimmera CMA's business. Such grounds might include cost, lack of adequate replacement staff, loss of efficiency and the impact on customer service.

26.11.3 Employee's request and employer's decision to be in writing

The employee's request and the Wimmera CMA's decision made under Clause 26.11.1(b) and Clause 26.11.1(c) must be recorded in writing. The employer's response, including details of the reasons for any refusal, must be given as soon as practicable, and no later than 21 days after the request is made.

26.11.4 Request to return to work part-time

Where an employee wishes to make a request under clause 26.11.1(c), such a request must be made as soon as possible but no less than seven weeks prior to the date upon which the employee is due to return to work from parental leave.

26.12 Variation of period of parental leave

26.12.1 Unless agreed otherwise between the Wimmera CMA and employee, where an employee takes leave under Clause 26.4.1 or Clause 26.11.1, an employee may apply to their employer to change the period of parental leave on one occasion. Any such change must be notified in writing at least four weeks before the commencement of the changed arrangements.

26.12.2 Any other request for a variation to the period of parental leave within or after the 52 week period is at Wimmera CMA's discretion (notice is not needed if the change is unforeseen, for example premature birth).

26.12.3 Where during the period of parental leave the child/ren in respect of whom the leave was taken dies, an employee shall be entitled to continue or reduce or extend the parental leave for such period as a registered medical practitioner certifies as necessary, provided the period does not exceed the total parental leave period available under 26.11.1.

26.12.4 Parental leave and other entitlements

An employee may in lieu of or in conjunction with parental leave, access any annual leave or long service leave entitlements which they have accrued subject to the total amount of leave not exceeding 52 weeks or a longer period as agreed under Clause 26.11.1.

26.13 Transfer to a safe job

26.13.1 Where an employee is pregnant and, in the opinion of a registered medical practitioner, illness or risks arising out of the pregnancy or hazards connected with the work assigned to the employee make it inadvisable for the employee to continue at her present work, the employee will, if the Wimmera CMA deems it practicable, be transferred to a safe job with no other change to the employee's terms and conditions of employment until the commencement of parental leave.

26.13.2 If the Wimmera CMA does not think it to be reasonably practicable to transfer the employee to a safe job, the employee may take paid leave, or the Wimmera CMA may require the employee to take paid no safe job leave immediately for a period which ends at the earliest of either:

- (a) when the employee is certified unfit to work during the six week period before the expected date of birth by a registered medical practitioner or registered midwife, or
- (b) when the employee's pregnancy results in the birth of a living child or when the employee's pregnancy ends otherwise than with the birth of a living child.

The entitlement to no safe job leave is in addition to any other leave entitlement the employee has.

26.14 Returning to work after a period of parental leave

26.14.1 An employee will notify of their intention to return to work after a period of parental leave at least four weeks prior to the expiration of the leave.

26.14.2 Subject to Clause 26.14.3, an employee will be entitled to the position which they held immediately before proceeding on parental leave. In the case of an employee transferred to a safe job pursuant to Clause 26.13 hereof, the employee will be entitled to return to the position they held immediately before such transfer.

26.14.3 Where such position no longer exists but there are other positions available which the employee is qualified for and is capable of performing, the employee will be entitled to a position as nearly comparable in status and pay to that of their former position.

26.14.4 An employee returning to work who is breast feeding can access lactation breaks of 30 minutes per day for up to 26 weeks. These breaks can be used for both breast feeding or expressing.

26.15 Replacement employees

26.15.1 A replacement employee is an employee specifically engaged or temporarily promoted or transferred, as a result of an employee proceeding on parental leave.

26.15.2 Before the employer engages a replacement employee the Wimmera CMA must inform that person of the temporary nature of the employment and of the rights of the employee who is being replaced.

26.16 Consultation and Communication during Parental leave

26.16.1 Where an employee is on parental leave and a definite decision has been made that will have a significant effect on the status, pay or location of the employee's pre-parental leave position, the Wimmera CMA shall take reasonable steps to;

- (a) make information available in relation to any significant effect the change will have on the status or responsibility level of the position the employee held before commencing parental leave; and
- (b) provide an opportunity for the employee to discuss any significant effect the change will have on the status or responsibility level of the position the employee held before commencing parental leave.

26.16.2 The employee shall take reasonable steps to inform the Wimmera CMA about any significant matter that will affect the employee's decision regarding the duration of parental leave to be taken, whether the employee intends to return to work and whether the employee intends to request to return to work on a part-time basis.

26.16.3 The employee shall also notify the Wimmera CMA of changes of address or other contact details which might affect the Wimmera CMA's capacity to comply with Clause 26.16.2.

26.17 Keep in touch days

26.17.1 This clause does not prevent an employee from performing work for their employer on a keeping in touch day while they are taking unpaid parental leave. If the employee does so, the performance of that work does not break the continuity of the period of unpaid parental leave.

26.17.2 A day on which the employee performs work for the employer during the period of leave is a keeping in touch day if:

- (a) the purpose of performing the work is to enable the employee to keep in touch with their employment in order to facilitate a return to that employment after the end of the period of leave; and
- (b) both the employee and the employer consent to the employee performing work for the employer on that day; and
- (c) the day is not within:
 - i. if the employee suggested or requested that they perform work for the employer on that day—14 days after the date of birth, or day of placement, of the child to which the period of leave relates; or
 - ii. otherwise 42 days after the date of birth, or day of placement, of the child; and
- (d) the employee has not already performed work for the employer or another entity on 10 days during the period of leave that were keeping in touch days.

The duration of the work the employee performs on that day is not relevant for the purposes of this subsection.

Note: The employer will be obliged, under the relevant contract of employment or industrial instrument, to pay the employee for performing work on a keeping in touch day.

26.17.3 For the purposes of paragraph (0)(d), treat as 2 separate periods of unpaid parental leave:

- (a) a period of unpaid parental leave taken during the employee's available parental leave period; and
- (b) a period of unpaid parental leave taken as an extension of the leave referred to in paragraph (a) for a further period immediately following the end of the available parental leave period.

27. PERSONAL/CARER'S LEAVE

The provisions of this clause apply to full-time and regular part-time employees. See Clause 27.6 for casual employees' entitlements.

27.1 Amount of paid personal/carer's leave

27.1.1 Paid personal/carer's leave will be available to an employee – where they have sufficient leave accrued - when they are absent because of:

- (a) personal illness or injury (sick leave); or
- (b) personal illness or injury of an immediate family or household member who requires the employee's care and support (carer's leave); or

- (c) an unexpected emergency affecting an immediate family or household member (carer's leave); or
- (d) the requirement to provide ongoing care and attention to another person who is wholly or substantially dependent on the employee, provided that the care and attention is not wholly or substantially on a commercial basis (carer's leave).

27.1.2 Personal leave of:

- (a) 15 days will be accrued for each year of service; the entitlement will accrue on an hourly basis and will be recorded in total number of hours
- (b) In the first year of employment an employee will be entitled to access to 2 days (in advance of entitlement) on their first day.

27.1.3 Where an employee, at the conclusion of their probation, becomes ill or a dependant requires care; and has insufficient personal leave accrued; with the approval of their Manager can access up to their first years entitlement in advance An employee's entitlement accrues progressively during a year of service according to the employee's ordinary hours of work, and unused personal leave accumulates from year to year.

27.2 Immediate family

27.2.1 The term immediate family includes;

- (a) Spouse, including a de facto spouse, or former spouse or former de facto spouse. The employee's "de facto spouse" means a person who lives with the employee as husband, wife or same sex partner on a bona fide domestic basis, although not legally married to the employee; and
- (b) child or an adult child (including an adopted child, a step child or an ex-nuptial child), parent, grandparent, grandchild or sibling of the employee or spouse of the employee.

27.3 Sick leave

27.3.1 Where the employee is absent due to personal illness or injury (of either themselves or an immediate family member) every reasonable effort will be made to notify the Wimmera CMA of such absence by 9:00am, stating the estimated duration of the absence.

27.3.2 For each period of personal/carers leave exceeding two working days, a satisfactory certificate from a medical practitioner will be required.

27.3.3 Provided further that for any absence, either the working day before or the working day after a time in lieu day, holiday or public holiday, an employee will be required to provide a certificate from a medical practitioner or a signed statutory declaration detailing the reason for their absence.

27.3.4 A public holiday observed during any period of personal/carers leave of an employee will not be regarded as part of the personal/carers leave.

27.3.5 On the production of satisfactory medical evidence by a duly qualified medical practitioner in respect of a period or periods of personal illness or injury (other than injury for which workers compensation is payable) occurring during the employee's annual leave or long service leave, such medical evidence shall be provided to the Wimmera CMA at the earliest reasonable opportunity but no later than 14 days of the occurrence of such personal and serious incapacitating illness or injury, unless impracticable or on the first day back at or whichever is the earlier.

The Wimmera CMA shall:

- (a) Debit such periods of personal and serious incapacitating illness or injury against the employee's personal/carer's leave entitlement had the employee normally been required to work subject to the existence of sufficient personal/carer's leave credit; or
- (b) Grant the employee additional annual leave or long service leave equivalent to the period of personal and serious incapacitating illness or injury. Such additional annual leave or long service leave shall be taken at a time mutually convenient to the employee and the Wimmera CMA; and
- (c) Provided that notwithstanding the requirement for a medical certificate sub clause 27.3.5 shall not apply unless the employee notifies the Wimmera CMA of such personal and serious incapacitating illness or injury within ten days of such occurrence where practicable, stating the nature of the personal and serious incapacitating illness or injury and the estimated duration, unless impracticable or on the first day back at work, whichever is the earlier.

27.4 Carer's leave

- 27.4.1** Available where a member of the employee's immediate family or household needs care and/or support.
- 27.4.2** The employee must if required by the Wimmera CMA establish by production of a medical certificate, the medical condition of the person concerned and that the illness is such as to require care by another. Evidence requirements are as for personal/carer's leave detailed in clause 27.3.2 and 27.3.3.
- 27.4.3** In normal circumstances, the employee must not take carer's leave under this clause where another person has taken leave to care for the same person.
- 27.4.4** The employee, must, where practicable, give the Wimmera CMA notice prior to the absence of the intention to take leave, the name of the person requiring care and their relationship to the employee, the reasons for the taking of such leave and estimated length of absence. If it is not practicable for the employee to give prior notice of absence, the employee must notify the Wimmera CMA by telephone of such absence at the first opportunity on the day of the absence.

27.5 Unpaid Carers Leave

- 27.5.1** Where an Employee has exhausted all paid personal leave entitlements, they are entitled to take unpaid personal leave to care for members of their immediate family or household who are sick and require care and support or who require care due to an unexpected emergency. The organisation and the Employee will agree on the period. In the absence of agreement, the Employee is entitled to take two (2) days' unpaid personal leave per occasion.

27.6 Casual Employees – Caring Responsibilities

- 27.6.1** Casual employees are entitled to be unavailable to attend work if they need to care for members of their immediate family or household who are sick and require care and support, or who require care due to an unexpected emergency, or the birth of a child.
- 27.6.2** The organisation and the employee will agree on the period for which the employee will be entitled to be unavailable to attend work. In the absence of agreement, the employee is entitled to not be unavailable to attend work for two (2) days per occasion. The casual Employee is not entitled to any payment for the period of non-attendance.

27.6.3 The organisation will require the casual employee to provide satisfactory evidence to support the taking of this leave.

27.6.4 The employer must not fail to re-engage a casual employee because the employee accessed the entitlements provided for in this clause. The rights of the employer to engage or not to engage a casual employee are otherwise not affected.

27.7 Leave for Blood Donations

27.7.1 Employees will be granted access to their personal leave for the purpose of giving blood and plasma; provided that such leave shall be limited to one occasion every three months.

27.7.2 Employees must provide reasonable notice to their Unit Manager of their intention to access this leave entitlement.

27.7.3 The absence must be supported by the production of a completed Certificate of Attendance/Card from the Blood Bank.

27.7.4 Staff can also elect to take unpaid leave for blood donations.

27.8 Leave to engage in Voluntary Community Committees

27.8.1 An Employee who is elected to a board or committee of management of a local statutory community organisation (excluding sporting organisations) in a voluntary capacity may, if the Employer has given prior approval, be granted access to their personal leave to attend the approved organisations board/committee meetings during work hours for their term in office.

28. GENDER TRANSITION LEAVE

28.1 The Employer encourages a culture that is supportive of transgender and gender diverse Employees and recognises the importance of providing a safe environment for Employees undertaking gender transition.

28.2 Gender Transition refers to the process where a transgender Employee commences living as a member of another gender. This is sometimes referred to 'affirming' their gender. This may occur through medical, social or legal changes.

28.3 Employees may give effect to their transition in a number of ways and are not required to be undergoing specific types of changes, such as surgery, to access leave under this clause.

28.4 Amount of gender transition leave

(a) An Employee (other than a Casual Employee) who commences living as a member of another gender is entitled Gender Transition Leave for the purpose of supporting the Employee's transition. Gender Transition Leave will comprise:

- i. up to 4 weeks (20 days) paid leave for essential and necessary gender affirmation procedures, and
- ii. up to 48 weeks of unpaid leave.

(b) The Gender Transition Leave entitlements outlined in clause 28.4(a) are available to be taken by the Employee within the first 52 weeks after they commence living as a member of another gender

- (c) Essential gender affirmation procedures may include:
 - i. medical or psychological appointments, or
 - ii. hormonal appointments, or
 - iii. surgery and associated appointments, or
 - iv. appointments to alter the Employee's legal status or amend the Employee's gender on legal documentation, or
 - v. any other similar necessary appointment or procedure to give effect to the Employee's transition as agreed with the Employer.
- (d) An Employee who is entitled to unpaid Gender Transition Leave may, in conjunction with all or part of that leave utilise accrued Annual or Long Service Leave, provided that the combined total of all paid and unpaid leave taken does not exceed 52 continuous weeks.
- (e) Gender Transition Leave may be taken as consecutive, single or part days as agreed with the Employer.
- (f) Leave under this clause will not accrue from year to year and cannot be cashed out on termination of employment.

28.5 Gender Transition Leave – Casual employees

Casual Employees are entitled to access unpaid leave of up to 52 continuous weeks duration for gender transition purposes.

28.6 Notice and evidence requirements

- (a) An Employee seeking to access Gender Transition Leave must provide the Employer with at least 4 weeks' written notice of their intended commencement date and expected period of leave, unless otherwise agreed by the Employer.
- (b) An Employee seeking to access Gender Transition Leave may be required to provide suitable supporting documentation or evidence of their attendance at essential gender affirmation procedures. This may be in the form of a document issued by a registered practitioner, a lawyer, or a State, Territory or Federal government organisation, statutory declaration or other suitable supporting documentation.

29. FAMILY VIOLENCE LEAVE

29.1 General Principle

- (a) The Employer recognises that Employees sometimes face situations of violence or abuse in their personal life that may affect their attendance or performance at work. Therefore, the Employer is committed to providing support to staff that experience family violence.
- (b) Leave for family violence purposes is available to employees who are experiencing family violence, and also allow them to be absent from the workplace to attend counselling appointments, legal proceedings and other activities related to, and as a consequence of, family violence.

29.2 Definition of Family Violence

Family violence includes physical, sexual, financial, verbal or emotional abuse by a family member as defined by the *Family Violence Protection Act 2008*.

29.3 Eligibility

- (a) Leave for family violence purposes is available to all full time, part time and casual employees.

29.4 General Measures

- (a) Evidence of family violence may be required and can be in the form an agreed document issued by the Police Service, a Court, a registered health practitioner, a Family Violence Support Service, district nurse, maternal and health care nurse or Lawyer. A signed statutory declaration can also be offered as evidence.
- (b) All personal information concerning family violence will be kept confidential in line with the Employer's policies and relevant legislation. No information will be kept on an Employee's personnel file without their express written permission.
- (c) No adverse action will be taken against an Employee if their attendance or performance at work suffers as a result of experiencing family violence.
- (d) The Employer will identify contact/s within the workplace who will be trained in family violence and associated privacy issues. The Employer will advertise the name of any Family Violence contacts within the workplace.
- (e) An Employee experiencing family violence may raise the issue with their immediate supervisor, Family Violence contacts, union delegate or nominated Human Resources contact. The immediate supervisor may seek advice from Human Resources if the Employee chooses not to see the Human Resources or Family Violence contact.
- (f) Where requested by an employee, the Human Resources contact will liaise with the Employee's manager on the Employee's will make a recommendation on the most appropriate form of support to provide in accordance with clause 29.5 and clause 29.6
- (g) The Employer will develop guidelines to supplement this clause and which details the appropriate action to be taken in the event that an employee reports family violence.

29.5 Leave

- (a) A full time or part time employee experiencing family violence will have access to 20 days per year of paid special leave following an event of family violence and for related purposes such as medical appointments, legal proceedings and other activities related to family violence (this leave is not cumulative but if the leave is exhausted consideration will be given to providing additional leave). This leave will be in addition to existing leave entitlements and may be taken as consecutive or single days or as a fraction of a day and can be taken without prior approval.
- (b) An Employee who supports a person experiencing family violence may utilise their personal/carer's leave entitlement to accompany them to court, to hospital, or to care for children. The Employer may require evidence consistent with clause (a) from an Employee seeking to utilise their personal/carer's leave entitlement.
- (c) Casual employees experiencing family violence will have access to 10 days per year of paid special leave following an event of family violence and for related purposes such as medical appointments, legal proceedings and other activities related to family violence (this leave is not cumulative)

29.6 Individual Support

- (a) In order to provide support to an Employee experiencing family violence and to provide a safe work environment to all Employees, the Employer will approve any reasonable request from an Employee experiencing family violence for:
 - (i) temporary or ongoing changes to their span of hours or pattern or hours and/or shift patterns
 - (ii) temporary or ongoing job redesign or changes to duties
 - (iii) temporary or ongoing relocation to suitable employment
 - (iv) a change to their telephone number or email address to avoid harassing contact
 - (v) any other appropriate measure including those available under existing provisions for family friendly and flexible work arrangements.
- (b) Any changes to an employee's role should be reviewed at agreed periods. When an employee is no longer experiencing family violence, the terms and conditions of employment may revert back to the terms and conditions applicable to the Employee's substantive position.
- (c) An employee experiencing family violence will be offered access to the Employee Assistance Program (EAP) and/or other available local employee support resources. The EAP shall include professionals trained specifically in family violence.
- (d) An Employee that discloses that they are experiencing family violence will be given information regarding current support services.

30. COMPASSIONATE LEAVE

The provisions of this clause apply to full-time and regular part-time employees. See Clause 30.8 for casual employees' entitlements.

30.1 Amount of Compassionate Leave

Employees other than casuals are entitled to up to three days paid compassionate leave on each occasion, when a member of the employee's immediate family (see definition 27.2.1) or a member of the employee's household

- (a) contracts or develops a personal illness that poses a serious threat to his or her life
- (b) sustains a personal injury or illness that poses a serious threat to their life; or
- (c) dies.
- (d) A baby in their immediate family or household is stillborn
- (e) the employee has a miscarriage
- (f) the employee's current spouse or de facto partner has a miscarriage

30.2 Additional 2 days bereavement leave

In addition to clause 30.1 an additional entitlement will be available of up to two days paid bereavement leave upon the death of an employee's parent, spouse, child or sibling.

30.3 Any unused portion of compassionate leave will not accrue from year to year and will not be paid out on termination.

- 30.4** Employees must be employed by Wimmera CMA at the time of the occasion the leave is claimed for to be eligible for paid leave.
- 30.5** An employee may take unpaid compassionate leave by agreement with the Wimmera CMA.
- 30.6** The organisation will require the employee to provide satisfactory evidence to support the taking of compassionate leave.
- 30.7** For employees who have experienced a death outside the immediate family, leave without pay or annual leave may be granted at the discretion of the CEO.
- 30.8** Compassionate leave – Casual Employee
- The organisation and the employee will agree on the period for which the employee will be entitled to be unavailable to attend work when a member of the employee's immediate family (see definition) or a member of the employee's household
- (a) contracts or develops a personal illness that poses a serious threat to his or her life
 - (b) sustains a personal injury or illness that poses a serious threat to their life; or
 - (c) dies.
- In the absence of agreement, the employee is entitled to be unavailable to attend work for three (3) days per occasion. The casual Employee is not entitled to any payment for the period of non-attendance

31. LONG SERVICE LEAVE

- 31.1** Long Service Leave shall be in accordance with the provisions of the *Water Act 1989*, the Long Service Leave (Water) Regulations (2011) and this clause 31 of the Agreement.
- 31.2** **Entitlement**
- An employee who has been employed by the Wimmera CMA for 10 years is entitled in accordance with the regulations to be granted 3 months' long service leave with pay in respect of that 10 years' service and 1½ months' long service leave with pay in respect of each additional 5 years of completed service.
- 31.3** An employee who has completed seven years continuous service shall be entitled to access their Long Service Leave entitlement on a pro-rata basis after an initial seven (7) years of continuous service.
- 31.4** Employees long service leave entitlement will be accrued on an hourly basis and the balance recorded in total hours.
- 31.5** A public holiday that occurs during a period of long service leave shall not be regarded as part of the leave.
- 31.6** Subject to the approval of the Wimmera CMA, long service leave may be taken at double pay for a period of half the entitlement, or at half pay for a period of twice the entitlement.
- 31.7** Wimmera CMA will recognise prior service with recognised public sector authorities.
- 31.8** Calculation of the period of service for the purpose of long service leave;
- In calculating the period of service, there shall be included:
- (a) any period of paid leave
 - (b) any prior service, recognised by Wimmera CMA

(c) for any period for which the employee was absent from duty and in receipt of accident makeup pay in accordance with clause 20 with the exception of clause 20.1.4; where this obligation will cease upon separation from the organisation.

32. JURY SERVICE

- 32.1** Any full time or part time employee required to attend for jury service during their ordinary working hours shall be granted leave and will receive their regular pay less any monies provided to them from the court system.
- 32.2** An employee will notify their Manager and HR as soon as possible of the date upon which they are required to attend for jury service.
- 32.3** Further, the employee will give the Wimmera CMA proof of their attendance, the duration of such attendance and the amount received in respect of such jury service.

33. EMERGENCY SERVICES LEAVE

- 33.1** The Wimmera CMA supports the work and services as provided by volunteers acting as authorised emergency services personnel.

From time to time the Authority is requested to release staff from work so that they may attend to local voluntary emergency services duties. The provision of these services is viewed by the Authority as an asset in the prevention of loss and hardship to individuals and the community in general.

Personnel of the Wimmera CMA who are registered volunteers are entitled to special leave with pay when responding to an emergency for ordinary hours lost.

All staff who are members of emergency services organisations and may need to attend at an emergency are to ensure they have notified Wimmera CMA and have provided evidence of membership to Wimmera CMA through their declaration of outside employment.

Access to this leave is provided with the following parameters.

- That the release from work does not subject the Authority to any detriment in respect to work scheduling and the provision of essential services; and
- That the emergency services have called for volunteers from the members local brigade/unit
- That the release from work is to respond to a local emergency event*. This does not include to be on call.
 - * A local emergency event – is deemed to be within the Wimmera CMA Catchment.
- The leave is to be applied for and approved by the employee's manager.
- Emergency Services Leave has the same application as annual leave or Personal/Carer's leave; the employee is on leave from the workplace.

Under normal circumstances the release from work will be for attendance at a specific emergency and be of short duration up to a maximum of two days. There will exist some circumstance that may require attendance for a longer period of time e.g. bushfires which will be assessed at that point in time and permission granted to be absent from work dependant on the above parameters.

Personnel are to see approval from their Senior Manager of the intention to attend for emergency duty as early as possible. If the Senior Manager is not available a member of the senior management team.

At all times personnel have a responsibility to keep the Authority informed, specifically their direct Manager, if possible, of their status and any changes to their expected absence from work.

34. DEFENCE RESERVE LEAVE

- 34.1** Entitlement: Subject to 35.4, leave without pay will be granted to employees for service in accordance with the *Defence Reserve Service (Protection) Act 2001* and the *Defence Reserves Re-employment Act 1995* up to a maximum of 78 weeks continuous service.
- 34.2** Notice Period: Employees are required to consult with their supervisor regarding the proposed timing of the service to provide their supervisor with as much notice as possible of the time when the service will take place.
- 34.3** Applications: Applications should be submitted in writing detailing the period of leave and must be supported by a request by the Department of Defence. Applications should be submitted to the applicant's manager.
- 34.4** Salary: Where the employee's base pay (excluding allowances) from the Australian Defence Force during Defence Reserve service is less than their ordinary salary, the Authority will make-up the difference in salary for the duration of the Defence Reserve service.
- 34.5** Leave Accruals: Defence Reserve Leave will not affect the accrual of Leave entitlements.

35. LEAVE WITHOUT PAY

- 35.1** Leave without pay will only be granted in special circumstances. The reasons for leave without pay must be discussed with the employee's direct Manager.
- 35.2** With the exception of extended sick leave; Leave without pay will only be granted where all other leave has been exhausted (Annual Leave, LSL and Time in Lieu.).
- 35.3** Employees will not accrue any leave whilst on leave without pay, nor be entitled to public holidays within that leave period.
- 35.4** All applications for leave without pay, must be approved by the CEO.

36. ANNUAL LEAVE AND LEAVE LOADING

36.1 Leave Entitlement

- 36.1.1** The employee (other than a casual) shall be entitled to four (4) weeks (pro rata for part time employees) annual leave for every twelve months' of continuous service.
- 36.1.2** Annual leave will be accrued on an hourly basis and the balance recorded in total hours.
- 36.1.3** Casual employees are not entitled to annual leave or annual leave loading.

36.2 Public Holiday

- 36.2.1** A public holiday falling within a period of annual leave shall not be regarded as part of that leave.

36.3 Leave to be taken

- 36.3.1** Annual leave entitlements should be taken in the year that they are accrued.
- 36.3.2** Annual leave shall be approved in accordance with the provisions of this clause to be taken at times which are convenient to the needs of the Wimmera CMA but as far as is practicable the wishes of the employee shall be considered when fixing the time for taking of leave.
- 36.3.3** Where the employee has been refused an application for leave on these grounds an alternative time for the taking of leave shall be agreed between the Wimmera CMA and the employee, and such agreed alternative time shall not be changed, except at the request of the employee.
- 36.3.4** All employees are to manage their annual leave to ensure they do not exceed 8 weeks annual leave, unless otherwise agreed between Wimmera CMA and the employee – refer clause 36.4 for dealing with excess leave.

36.4 Dealing with excess annual leave by agreement

- 36.4.1** Before an employee can be directed to take leave, or an employee can give notice of leave to be granted under clause 36.3.4, the employer or employee must request a meeting and must genuinely try to agree upon steps that will be taken to reduce or eliminate the employee's excessive leave accrual.

36.4.2 Employer may direct that leave be taken

- This subclause applies if an employee has an excessive leave accrual.
- If agreement is not reached under clause 36.4.1, the employer may give a written direction to the employee to take a period or periods of paid annual leave. The direction must state that it is a direction given under clause 36.4 of this agreement

36.4.3 Such a direction must not:

- result in the employee's remaining accrued entitlement to paid annual leave at any time being less than six weeks (taking into account all other paid annual leave that has been agreed, that the employee has been directed to take or that the employee has given notice of under clause 36.4;
- require the employee to take any period of leave of less than one week;
- require the employee to take any period of leave commencing less than eight weeks after the day the direction is given to the employee;
- require the employee to take any period of leave commencing more than 12 months after the day the direction is given to the employee; or
- be inconsistent with any leave arrangement agreed between the employer and employee.

An employee to whom a direction has been given under this subclause may make a request to take paid annual leave as if the direction had not been given. The employer is not to take the direction into account in deciding whether to agree to such a request.

Note: The NES state that the employer must not unreasonably refuse to agree to a request by the employee to take paid annual leave.

If leave is agreed after a direction is issued and the direction would then result in the employee's remaining accrued entitlement to paid annual leave at any time being less than six weeks, the direction will be deemed to have been withdrawn.

The employee must take paid annual leave in accordance with a direction complying with this subclause.

36.4.4 Employee may require that leave be granted

This subclause applies if an employee has had an excessive leave accrual for more than six months and the employer has not given a direction under subclause 36.4 that will eliminate the employee's excessive leave accrual.

If agreement is not reached under clause 36.4 the employee may give a written notice to the employer that the employee wishes to take a period or periods of paid annual leave. The notice must state that it is a notice given under clause 36.4 of this agreement.

Such a notice must not:

- result in the employee's remaining accrued entitlement to paid annual leave at any time being less than six weeks (taking into account all other paid annual leave that has been agreed, that the employee has been directed to take or that the employee has given notice of under this subclause);
- provide for the employee to take any period of leave of less than one week;
- provide for the employee to take any period of leave commencing less than eight weeks after the day the notice is given to the employer;
- provide for the employee to take any period of leave commencing more than 12 months after the day the notice is given to the employer; or
- be inconsistent with any leave arrangement agreed between the employer and employee.

The employer must grant the employee paid annual leave in accordance with a notice complying with this subclause.

36.4.5 Dispute Resolution

Without limiting the dispute resolution clause of this agreement, an employer or an employee may refer the following matters to the Fair Work Commission under the dispute resolution clause:

- a dispute about whether the employer or employee has requested a meeting and genuinely tried to reach agreement under clause 36.4.1;
- a dispute about whether the employer has unreasonably refused to agree to a request by the employee to take paid annual leave; and
- a dispute about whether a direction to take leave complies with clause 36.4 or whether a notice requiring leave to be granted complies with clause 36.4.4

36.4.6 Accrued leave will not be paid out to ongoing employees who fail to reduce their leave balances.

36.4.7 Leave may not be approved if the employee does not have enough accrued leave to cover their requirement.

36.4.8 Where a dispute arises as to the period or time of taking annual leave, such dispute may be determined in accordance with Clause 7 - Disputes Preventions and Settlement.

36.5 Leave payment and annual leave loading

36.5.1 In addition to ordinary rates as prescribed in this agreement, a loading of 17.5% of ordinary rates shall be paid on annual leave.

36.5.2 The annual leave loading prescribed in this subclause will be paid annually in the first pay in December.

36.5.3 The maximum loading payable shall not exceed an amount calculated in respect of the equivalent of the Statisticians Average Weekly Earnings (Origin Australia) for the May quarter in the year that the loading is paid.

36.5.4 Where the employer and the majority of employees covered by this agreement agree, annual leave loading may be aggregated into the annual salaries of the employees (that is, an increase in salary levels of 1.35%).

36.5.5 Annual Leave Loading will be classified as ordinary time earnings (OTE).

37. PURCHASED LEAVE

37.1 The purpose of purchased leave is to provide staff with the opportunity to purchase up to four weeks leave in addition to their normal four weeks of annual leave. This provision allows greater flexibility in employment for staff members who wish to use this provision to address personal issues of family/work balance, and for staff who wish to extend their leave options for other personal reasons.

37.2 Definition

37.2.1 Leave taken under these provisions will be known as Purchased Leave.

37.2.2 Purchased leave is a provision which allows approved staff to take up to an additional 4 weeks leave per year. This will be managed through a fortnightly reduction in salary.

37.3 Application

37.3.1 The Purchased Leave model of employment can only be introduced at an employee's initiative through formal application; and will be reviewed annually as part of their work plan.

37.3.2 Applications for Purchased Leave must be approved by the employee's Senior Manager and agreed to by the CEO. Such approvals will not be granted if it is deemed that it will have a negative impact on organisational performance.

37.3.3 An employee working under the Purchased Leave model of employment may request a reversion to standard employment conditions. Such requests can only be made 12 months from the commencement of the purchased leave arrangement; with the exception of extenuating circumstances which will allow its variation with the approval of the CEO.

37.4 Purchased Leave and Leave Loading

37.4.1 The 17.5% leave loading payment described in Clause 36.5 will not apply to any additional purchased leave entitlements.

37.5 Time frame for Purchased Leave

37.5.1 All purchased leave hours must be taken within 12 months of transfer to the Purchased Leave model – with leave balances not exceeding 8 weeks.

37.5.2 Upon annual review if purchased leave has not been used, the employee shall revert back to the standard 4 weeks of annual leave per annum.

38. PUBLIC HOLIDAYS

38.1 The employee (other than casual) shall be entitled to the following holidays without loss of pay:

38.1.1 New Year's Day, Australia Day, Labour Day, Good Friday, Easter Saturday, Easter Sunday, Easter Monday, ANZAC Day, King's Birthday, Melbourne Cup Day, Christmas Day and Boxing Day.

38.1.2 Where gazetted by the Victorian State Government the Friday before the Australian Football League (AFL) Grand Final.

38.1.3 Melbourne Cup Day and/or AFL Grand Final Day may be substituted by agreement between the Wimmera CMA and an Employee for one of the ordinary days within the office closure period between Christmas Day and New Year's Day.

38.2 Victorian employees are also entitled to the following additional or substitute days:

38.2.1 When Christmas Day is a Saturday, an additional holiday shall be observed on the next Monday.

38.2.2 When Christmas Day is a Sunday, an additional holiday shall be observed on the next Tuesday.

38.2.3 When Boxing Day is a Saturday or a Sunday, an additional holiday shall be observed on 28 December.

38.2.4 When New Year's Day is a Saturday or a Sunday, an additional holiday shall be observed on the next Monday.

38.2.5 When Australia Day is a Saturday or a Sunday, a holiday in lieu shall be observed on the next Monday.

38.3 Where in Victoria, public holidays are gazetted in the relevant locality on days other than those set out above, those days shall constitute additional or substitute holidays for the purpose of this agreement.

38.4 Additional or Substituted Public Holidays

Where in the whole or part of the State of Victoria, additional or substituted Public Holidays are declared or prescribed on days other than those set out in clauses 38.1 those days shall constitute additional or substituted holidays for the purpose of this Agreement for Employees who have their place of principal employment in a municipality to which the additional or substituted Public Holiday applies.

38.5 Where the Wimmera CMA and the majority of the employees agree, an alternative day off may be substituted for any of the public holidays listed above.

38.6 If the employee is required by the Wimmera CMA to work on a public holiday, or on a substituted day, they shall be paid for the time worked or be granted time off in lieu as provided in this agreement.

- 38.7** Should any public holiday prescribed in this agreement fall on a day which an employee is rostered for availability, such employee shall be paid at time and a half and will receive within a mutually agreeable time, a day in lieu on full pay.

39. REDEPLOYMENT

- 39.1** The Wimmera CMA will manage redeployment process in accordance with the relevant Government policy. This policy does not form part of this agreement.
- 39.2** If the employee is unsuccessful in being redeployed or appointed to a new position and no suitable vacancy exists, they shall be declared redundant and shall be eligible for the redundancy package available at the time of the redundancy under the relevant Government Policy. This policy does not form part of this agreement.

40. TRANSFER ALLOWANCE

In the event that there is a forced change to the operation and structure of Wimmera CMA that requires staff to be transferred to another business; to compensate for changed working arrangements a one off lump sum payment of \$2000 (pro-rata) is available to be paid to each transferred employee.

The payment is to be made at the time of the transfer.

Where a redundancy payment is made, there is no entitlement to the transfer allowance.

41. REDUNDANCY

- 41.1** Any redundancy package will be paid under the relevant Government Policy at the time. This policy does not form part of this agreement.

42. TRANSMISSION OF BUSINESS

- 42.1** The Wimmera CMA will manage transmission of business, should the need arise, in the following process:
- 42.1.1** Where Government Policy exists, comply with the requirements of the Government's Policy as it relates to Transmission of Business.
- 42.1.2** In the absence of Government Policy covering transmission of business the Wimmera CMA will comply with the following provisions:
- 42.2** The Wimmera CMA will not transmit any part or the whole of its business to another employer where that transmission will require the employment by the transmitter of any employees of the Wimmera CMA, during the life of this Agreement, unless that employer acknowledges its obligations under this Agreement under the *Fair Work Act 2009*.
- 42.3** In this clause, "business" includes trade, process, business or occupation and includes part of any such business and "transmission" includes transfer, outsourcing, assignment or succession whether by agreement of or by operation of a law and "transmitted" has a corresponding meaning.

43. SUPERANNUATION

- 43.1** The Wimmera CMA will meet its obligations to pay superannuation under the *Superannuation Guarantee (Administration) Act 1992 (Cth)* and related legislation as amended from time to time, regardless of the age of the employee.
- 43.2** The Wimmera CMA shall arrange payment of the applicable superannuation contribution to a complying fund. Superannuation will be calculated on the employee's average ordinary time earnings or other as prescribed under the *Superannuation Guarantee (Administration) Act 1992 (Cth)* or relevant legislation.
- 43.3** Employees have the right to nominate their preferred superannuation fund and upon commencement of employment shall be provided with a Standard Choice Form so as to receive superannuation payments into that nominated fund. The nominated fund must be a complying fund.
- 43.4** Where an employee has choice of fund, but does not make a choice, the Wimmera CMA will make Superannuation Guarantee Contributions to the Default Fund.
- 43.5** The Default Fund means Vision Super or their successor.

44. TERMINATION

44.1 Notice of Termination by Wimmera CMA

- 44.1.1** In order to terminate the employment of an employee (with the exception of an employee who has abandoned their employment – see 12.4), other than a casual, the Wimmera CMA shall give to the employee four weeks' notice in writing.
- 44.1.2** In addition to the above notice, employees over 45 years of age at the time of the giving of the notice with not less than two years continuous service are entitled to an additional one week's notice.
- 44.1.3** Payment in lieu of the prescribed notice periods (where applicable) shall be made if the appropriate notice period is not given, provided the employment may be terminated by part of the period of notice specified and part payment in lieu thereof.
- 44.1.4** In calculating any payment in lieu of notice, the wage the employee would have received in respect of the ordinary time that would have been worked during the period of notice, had the employment not been terminated, shall be used.

44.2 Notice of Termination by Employee

- 44.2.1** The notice of termination that is required to be given by the employee shall be the same as that required by the Wimmera CMA except that there shall be no additional notice based on the age of the employee concerned.
- 44.2.2** If an employee fails to give the notice specified to the Wimmera CMA, the Wimmera CMA has the right to withhold monies due to the employee to a maximum amount equal to the ordinary time rate of pay for the period of notice.

44.3 Time off during notice period

- 44.3.1** Where the Wimmera CMA has given notice of termination to an employee, an employee shall be allowed up to one day's time off without loss of pay for the purpose of seeking other employment.
- 44.3.2** The time off shall be taken at times that are convenient to the employee, after consultation and agreement with the Wimmera CMA.

44.4 Notice Period Shortened by Mutual Agreement

44.4.1 Provided that by mutual agreement between the parties, the employee after having given notice, may leave the employment prior to the expiration of the notice period and receive wages up to the last hour worked only.

44.5 Summary Dismissal

44.5.1 The Wimmera CMA shall have the right to dismiss the employee without notice for conduct that justifies instant dismissal, including gross misconduct, wilful damage or neglect of duty and in such cases the wages shall be paid up to the time of dismissal only.

45. DISCIPLINE

45.1 Application

45.1.1 Subject to applicable Victorian or Federal Legislation, any disciplinary action will be consistent with this clause. The Wimmera CMA is not obliged to comply with this clause in respect of:

- (a) Casual employees
- (b) Employees who are subject to a minimum employment period of employment; or
- (c) Employees subject to disciplinary action arising from serious misconduct.

45.2 Procedural Fairness to apply

45.2.1 For matters involving unsatisfactory work performance or behaviour, disciplinary action will be consistent with the principles of procedural fairness. Before commencing any formal disciplinary processes, the Wimmera CMA will:

- (a) Tell the employee the purpose of the meeting
- (b) Provide the employee with a copy of the formal disciplinary process to be followed
- (c) Provide a reasonable opportunity for the Employee to seek advice from a third party of their choice before the disciplinary procedure commences
- (d) Allow the employee the opportunity to provide details of mitigating circumstances
- (e) Provide the employee with the right to have a third party attend with them to any meetings or discussions, to any of the enacted Stages listed at Clauses 45.1 to 45.7
- (f) If a third party is to attend, prior notice of at least one working day must be given to the Wimmera CMA of this person's role in the proceedings.

45.3 Process

45.3.1 The Wimmera CMA must invoke disciplinary action in accordance with the process below. The Wimmera CMA may commence action at any stage of the process depending on the severity of the behaviour.

45.4 First Stage - Verbal Warning

45.4.1 The first stage is counselling the Employee. The Wimmera CMA must:

- (a) Advise the Employee of the unsatisfactory work performance or behaviour
- (b) Outline the standard required of the Employee; and
- (c) Provide the Employee with the opportunity to respond.

45.4.2 Once the Employee has had an opportunity to respond to the issues raised in the counselling session, the Employee will be given a period of time to improve. The Employee will be advised of any consequences of not meeting the required standard.

45.5 Second Stage - Written Warning

45.5.1 The second stage will occur if the Employee continues to engage in unsatisfactory work performance or behaviour, or does not demonstrate sufficient improvement. At this stage the Employee will be given a formal written warning by the Employee's Manager.

The warning must indicate:

- (a) What is expected of the employee
- (b) Where and how the employee is not meeting this expectation; and
- (c) The consequences of failure to improve.

The written warning will be placed on the Employee's personnel file.

45.6 Third Stage – Final Warning

45.6.1 The third stage is the final warning. The Employee will be informed in writing that if there is a continuation of the offending work performance or behaviours, the Employee will be dismissed. The final warning will be placed on the Employee's personnel file.

45.7 Fourth Stage - Termination

45.7.1 The fourth stage is termination of employment if the Employee has continued to engage in unacceptable behaviour following the issues of a final warning. Termination will be in accordance with Clause 44 of this agreement.

46. PROTECTIVE CLOTHING/ UNIFORMS

46.1 The Wimmera CMA is responsible for the provision of any and all necessary protective clothing, footwear and safety equipment necessary for the employees to safely perform all their duties.

46.1.1 The employee must use all the provided clothing, footwear and safety equipment.

46.1.2 It is a condition of this Workplace Agreement that such protective clothing remains the property of Wimmera CMA and shall be returned to Wimmera CMA on the cessation of the employee from Wimmera CMA's employment.

46.2 The Wimmera CMA also has a non-compulsory corporate uniform policy for all staff.

46.2.1 All corporate uniform also remains the property of Wimmera CMA and is required to be returned on the cessation of employment with Wimmera CMA.

47. WORKPLACE TRAINING LEAVE

- 47.1** In order to encourage cooperative workplace relations and facilitate the operation of this Agreement, an employee who makes a request to Wimmera CMA to attend a training in workplace relations, occupational health and safety, dispute resolution or grievance management may be granted up to five days paid leave per annum for attendance at such training, provided that the granting of such leave will not unduly affect Wimmera CMA operational requirements. Wimmera CMA will not unreasonably refuse the granting of such training leave.

48. WORKPLACE DELEGATES' RIGHTS

- 48.1** Clause 48 provides for the exercise of the rights of workplace delegates set out in section 350C of the Act.

NOTE: Under section 350C(4) of the [Act](#), the employer is taken to have afforded a workplace delegate the rights mentioned in section 350C(3) if the employer has complied with clause 48.

- 48.2** In clause 48:

- (a) **employer** means the employer of the workplace delegate;
- (b) **delegate's organisation** means the employee organisation in accordance with the rules of which the workplace delegate was appointed or elected; and
- (c) **eligible employees** means members and persons eligible to be members of the delegate's organisation who are employed by the employer in the enterprise.

- 48.3** Before exercising entitlements under clause 48, a workplace delegate must give the employer written notice of their appointment or election as a workplace delegate. If requested, the workplace delegate must provide the employer with evidence that would satisfy a reasonable person of their appointment or election.

- 48.4** An employee who ceases to be a workplace delegate must give written notice to the employer within 14 days.

- 48.5** Right of representation

A workplace delegate may represent the industrial interests of eligible employees who wish to be represented by the workplace delegate in matters including:

- (a) consultation about major workplace change;
- (b) consultation about changes to rosters or hours of work;
- (c) resolution of disputes;
- (d) disciplinary processes;
- (e) enterprise bargaining where the workplace delegate has been appointed as a bargaining representative under section 176 of the [Act](#) or is assisting the delegate's organisation with enterprise bargaining; and
- (f) any process or procedure within an award, enterprise agreement or policy of the employer under which eligible employees are entitled to be represented and which concerns their industrial interests.

48.6 Entitlement to reasonable communication

- (a) A workplace delegate may communicate with eligible employees for the purpose of representing their industrial interests under clause 48.5. This includes discussing membership of the delegate's organisation and representation with eligible employees.
- (b) A workplace delegate may communicate with eligible employees during working hours or work breaks, or before or after work.

48.7 Entitlement to reasonable access to the workplace and workplace facilities

- (a) The employer must provide a workplace delegate with access to or use of the following workplace facilities:
 - (i) a room or area to hold discussions that is fit for purpose, private and accessible by the workplace delegate and eligible employees;
 - (ii) a physical or electronic noticeboard;
 - (iii) electronic means of communication ordinarily used in the workplace by the employer to communicate with eligible employees and by eligible employees to communicate with each other, including access to Wi-Fi;
 - (iv) a lockable filing cabinet or other secure document storage area; and
 - (v) office facilities and equipment including printers, scanners and photocopiers.
- (b) The employer is not required to provide access to or use of a workplace facility under clause 48.7(a) if:
 - (i) the workplace does not have the facility;
 - (ii) due to operational requirements, it is impractical to provide access to or use of the facility at the time or in the manner it is sought; or
 - (iii) the employer does not have access to the facility at the enterprise and is unable to obtain access after taking reasonable steps.

48.8 Entitlement to reasonable access to training

Unless the employer is a small business employer, the employer must provide a workplace delegate with access to up to 5 days of paid time during normal working hours for initial training and at least one day each subsequent year, to attend training related to representation of the industrial interests of eligible employees, subject to the following conditions:

- (a) In each year commencing 1 July, the employer is not required to provide access to paid time for training to more than one workplace delegate per 50 eligible employees.
- (b) The number of eligible employees will be determined on the day a delegate requests paid time to attend training, as the number of eligible employees who are:
 - (i) full-time or part-time employees; or
 - (ii) regular casual employees.

- (c) Payment for a day of paid time during normal working hours is payment of the amount the workplace delegate would have been paid for the hours the workplace delegate would have been rostered or required to work on that day if the delegate had not been absent from work to attend the training.
- (d) The workplace delegate must give the employer not less than 5 weeks' notice (unless the employer and delegate agree to a shorter period of notice) of the dates, subject matter, the daily start and finish times of the training, and the name of the training provider.
- (e) If requested by the employer, the workplace delegate must provide the employer with an outline of the training content.
- (f) The employer must advise the workplace delegate not less than 2 weeks from the day on which the training is scheduled to commence, whether the workplace delegate's access to paid time during normal working hours to attend the training has been approved. Such approval must not be unreasonably withheld.
- (g) The workplace delegate must, within 7 days after the day on which the training ends, provide the employer with evidence that would satisfy a reasonable person of their attendance at the training.

48.9 Exercise of entitlements under clause 48

- (a) A workplace delegate's entitlements under clause 48 are subject to the conditions that the workplace delegate must, when exercising those entitlements:
 - (i) comply with their duties and obligations as an employee;
 - (ii) comply with the reasonable policies and procedures of the employer, including reasonable codes of conduct and requirements in relation to occupational health and safety and acceptable use of ICT resources;
 - (iii) not hinder, obstruct or prevent the normal performance of work; and
 - (iv) not hinder, obstruct or prevent eligible employees exercising their rights to freedom of association.
- (b) Clause 48 does not require the employer to provide a workplace delegate with access to electronic means of communication in a way that provides individual contact details for eligible employees.
- (c) Clause 48 does not require an eligible employee to be represented by a workplace delegate without the employee's agreement.

NOTE: Under section 350A of the [Act](#), the employer must not:

- (a) unreasonably fail or refuse to deal with a workplace delegate; or
- (b) knowingly or recklessly make a false or misleading representation to a workplace delegate; or
- (c) unreasonably hinder, obstruct or prevent the exercise of the rights of a workplace delegate under the [Act](#) or clause 48.

48.10 Interaction with other clauses of this award

Other clauses of this award may give additional or more favourable entitlements to workplace delegates (however described). If an entitlement of a workplace delegate under another clause of this award is more favourable to the delegate than an entitlement under clause 48, the entitlement under the other clause applies instead of the entitlement under clause 48.

49. ANNUAL CLOSE DOWN

49.1 The Wimmera CMA will be closed for the Christmas Period for each year of this agreement commencing on Christmas Eve – 24th December (or last working day before) and reopen on the 2nd January (or first working day after).

49.2 It is each employee's responsibility to ensure that they have sufficient leave (TIL or annual leave) to cover these three days.

49.3 Employees have the option of working Melbourne Cup Day and Grand Final Friday public holidays (see 38.1.3) allocating that public holiday as a day of leave between Christmas and New Year.

49.4 Where an employee commences employment within the 2 months prior to the shut down and has had insufficient time to accrue the required 3 days leave (TIL or annual leave), they will be permitted to use annual leave prior to accruing it. The employee must return to a positive balance before further leave can be taken.

APPENDIX A: - CLASSIFICATION AND SALARY RANGES 2024-2028

Workplace Agreement Commencement Salary Structure

The following rates of pay and salary apply to the life of the agreement.

EBA Band / Level First payment date			EBA Increase	EBA Increase	EBA Increase	EBA Increase
			07.08.24	07.08.25	07.08.26	07.08.27
Band	Level	2024	3.0%	3.0%	3.0%	3.0%
SEO		122,723	126,405	130,197	134,103	138,126
5	5	119,148	122,723	126,405	130,197	134,103
	4	115,645	119,114	122,687	126,368	130,159
	3	112,243	115,610	119,079	122,651	126,330
	2	108,942	112,210	115,577	119,044	122,615
	1	105,737	108,909	112,176	115,542	119,008
4	5	99,707	102,698	105,779	108,952	112,221
	4	96,699	99,600	102,588	105,666	108,836
	3	93,782	96,596	99,493	102,478	105,553
	2	90,953	93,681	96,492	99,387	102,368
	1	88,209	90,855	93,581	96,388	99,280
3	5	83,293	85,792	88,366	91,016	93,747
	4	80,703	83,125	85,618	88,187	90,832
	3	78,197	80,543	82,959	85,448	88,011
	2	75,765	78,038	80,379	82,791	85,274
	1	73,412	75,614	77,883	80,219	82,626
2	5	69,681	71,771	73,924	76,142	78,426
	4	68,026	70,067	72,169	74,334	76,564
	3	66,412	68,404	70,457	72,570	74,747
	2	64,834	66,779	68,783	70,846	72,972
	1	63,293	65,192	67,148	69,162	71,237
1	5	60,156	61,960	63,819	65,734	67,706
	4	58,771	60,534	62,350	64,221	66,147
	3	57,416	59,139	60,913	62,740	64,623
	2	56,094	57,777	59,510	61,295	63,134
	1	54,800	56,444	58,137	59,882	61,678
	3A	52,503	54,078	55,700	57,371	59,093
	2A	50,003	51,503	53,048	54,640	56,279
	1A	47,622	49,051	50,522	52,038	53,599

APPENDIX B: - CLASSIFICATION DEFINITIONS

With the exception of Band A - The Band 1 to 5 classifications have been prepared by Mercer and should be read in the context of the CED job score methodology.

Band A

Band Profile
Band A – this is classification is designed with a focus on providing development opportunities that would otherwise not be available. • Opportunity to gain experience (in a new field) • Significant training will be provided as part of any role in this classification • Aim to provide opportunities to potential employees who would otherwise not be considered due to lack of relevant experience, training.
Work Level Features
• Positions provide entry level to the industry • Opportunities for staff who lack industry specific experience / training • Potential employees might include ; Level 1 - school leavers; Level 2 - students at university; graduates in the first year where considerable investment is made in training; Level 3 -those returning to the workforce after a period of time; those looking for a career change; have previously worked so understand workplace culture and expectations • Mentoring and training will be provided by existing staff; with opportunities for secondment also available. • Daily activities are dictated by customer requirements and more senior staff • Training will be focused on developing an understanding of the NRM industry • Positions are to develop an understanding of the maintenance and use of hardcopy and computer-based records • Positions will be required to develop good communication skills to act as the face of the CMA, understand customer requirements and to convey appropriate factual information • Proficiency at this level requires a strong working knowledge of Microsoft Office packages
Progression Statements Band A → Review
Review to move from the current level Band A positions typically: • Have more independence to prioritise daily tasks and activities • Deal with more complex issues without reference to higher levels. • Have developed a working understanding of the NRM industry • Have completed on-the-job training/course • Maximum term an employee would be employed at this band would be 24 months. Performance will be reviewed periodically (no less than every 6 months) and recognised accordingly, formalised through the workplan where greater than 3 months tenure.

Band 1

Band Profile
Administrative and operational roles that act as the first point of contact for the CMA and provide team and customer support.
Work Level Features
• Positions provide administrative and operational services predominantly used by internal customers to support the organisation, and act as an initial point of contact for external customers • Daily activities are dictated by customer requirements and more senior staff • Positions are involved in the maintenance of hardcopy and computer-based administrative (or operational) records • Positions involve the completion of a range of tasks governed by established procedures, specific guidelines and standard instructions • Positions require a basic understanding of the activities performed by others within the CMA in order to refer external customers to the appropriate person • Positions require sufficiently developed communication skills to act as the face of the CMA, understand customer requirements and to convey appropriate factual information • Positions are required to prioritise some aspects of their daily work schedule in order to maximise the effectiveness of their service and work output • Proficiency at this level requires secondary school education plus administrative or operational skills and knowledge. A strong working knowledge of Microsoft Office packages and office equipment (such as telephones, photocopiers, faxes, scanners etc) would typically be acquired through on-the-job training.
Progression Statements Band 1 → Band 2
Band 2 positions typically: • Provide a more senior administrative or operational service to both internal and external customers • Have more independence to prioritise daily tasks and activities • Require greater experience • Deal with more complex issues without reference to higher levels.

Band 2

Band Profile
Administrative and operational roles with specialist training or extensive experience that provide team and customer support for the CMA and/or coordinate a range of tasks. This may also incorporate graduate positions where considerable experience is demonstrated such as in their second year in the role.
Work Level Features
• Positions apply advanced clerical / administrative or secretarial skills to undertake the work • Work at this level may be characterised by higher levels of accuracy / precision and the ability to interpret and apply legislation guidelines and procedures to perform the work. Positions may also require sound financial / numerical skills in order to gather, analyse and present data • Positions perform a group of integrated tasks involved in administrative/operational support for all areas of the CMA • Positions require the capacity to understand and respond to client requirements, develop recommendations and explain the implications of alternatives • Positions investigate routine administrative/operational matters and provide information and input for others to act upon • Clear policies, processes, guidance, procedures, standards and knowledge of precedent are available to assist completion of the more difficult or complex position requirements • Positions require a thorough understanding of the activities performed by others within the work area to provide a high standard of service to internal and external customers of the CMA • Positions require sufficiently developed communication skills to enable them to discuss and resolve administrative/operational issues and to convey factual information to external individuals or bodies • Positions may be expected to operate independently to determine their own work program within established priorities • Positions are required to prioritise daily work schedules in order to maximise the effectiveness of their service and work output • Proficiency at this level requires administrative, secretarial or commercial skills and knowledge, as well as strong working knowledge of Microsoft Office packages and office equipment (such as photocopiers, faxes, scanners etc)
Progression Statements Band 2 → Band 3
Band 3 positions typically: • Provide an entry level professional or senior administrative service to both internal and external customers of the CMA. • Are responsible for managing small projects, including developing budgets, controlling expenditure and supervising volunteers or contractors • Operate independently within broad role guidelines • Require an tertiary education or extensive experience relevant to the role • Deal with complex issues without reference to higher levels.

Band 3

Band Profile
These would include roles involved in managing a range of smaller projects and senior administrative/operational roles involved in providing a critical service to the CMA.
Work Level Features
- Externally focused positions at this level build and maintain partnerships with key external stakeholders such as landholders, schools or community groups, and provide advice to those stakeholders within their area of expertise as identified or defined within the PD - Internally focused positions at this level would be expected to build strong working relationships with the Advisory Committees, CEO and Senior Managers within the CMA - Positions may plan, facilitate and supervise small project works performed by volunteers, CMA staff or contractors, such as re-vegetation, fencing, water quality monitoring, or administrative projects - Positions require sufficiently developed communication skills to enable them to convince stakeholders to recognise a particular situation and work with the position/CMA, even where the stakeholder has potentially conflicting priorities and/or little appreciation of Natural Resource Management issues and principles - Positions may be responsible for developing and facilitating education sessions for community members and or landholders, including training others in the use of technical equipment where necessary - Positions may be responsible for the allocation and management of project funds and budgets - Positions may be required to maintain local databases, and to collect, analyse, interpret and report on data and trends - Guidance, professional standards and knowledge of precedent are available to assist completion of the more difficult or complex position requirements - Positions certify the quality of work performed or the integrity of the information / service provided. Typically the position shares accountability for the work – partnering with clients, peers or Managers in determining how to complete the work - Proficiency at this level requires an undergraduate degree (or equivalent experience) or extensive administration experience
Progression Statements Band 3 → Band 4
Band 4 positions typically: - may supervise one or more staff - require a higher level of technical skill (, an undergraduate degree or extensive relevant work experience and demonstrated performance) - utilise broader knowledge of the organisation as a whole and of the NRM industry - are held individually accountable for the integrity, validity and reliability of the advice that they provide.

Band 4

Band Profile Positions at this level will be responsible for co-ordination of a project, typically Officers or Co-ordinators. Typically positions require a qualification and extensive relevant work experience. Positions work under broad direction, analyse complex data and provide sound advice and recommendations to the CMA on issues relevant to the particular program area. More difficult decisions are discussed with the Senior Manager or senior specialists in the area.
Work Level Features • Positions at this level may lead the development and implementation of a project within a program area • Positions involved in co-ordinating a project may provide direction or guidance to contractors or a small team of Wimmera CMA staff in order to achieve the desired outputs • Positions would perform many of the activities associated with a project within a program area. The types of activities may include overseeing the implementation of the program strategy, developing policies, plans and programs, providing relevant program information to the general public, collecting, maintaining and analysing complex data and preparation of reports and recommendations • Positions are expected to liaise with clients, stakeholders, Local and State Government, other authorities and the regional community in relation to the particular program area. The purpose of this may be to develop and maintain relationships, persuade, convince or negotiate, to represent the Authority and for the purposes of engagement • Positions in a program area will report project outcomes to the Wimmera CMA Board, advisory committees and investors through the relevant Senior Manager • Work at this level requires qualifications in the relevant area (e.g., Agricultural Science, Natural Resource Management, Environmental Economics, Social Sciences or Accounting) together with a demonstrated understanding of the practices and issues in the relevant program area or subject matter discipline. • Proficiency at this level is dependent upon the ability to interpret complex legislation, regulations and procedural guidelines • Demonstrated organisational, project and time management skills and the ability to manage a number of projects simultaneously are required • Positions may be required to design tools, materials and models in order to improve the efficiency or effectiveness of processes or to enhance the quality of outcomes derived from these processes • Positions may be required to develop guidelines and procedures to enable effective administration of the program • Decisions deferred to the Senior Manager may be where conflict cannot be resolved between parties (between staff or providers) or desired reporting requirements for the Board • Established guidelines, prescriptions or techniques exist, but require some adaptation in order to perform the work • Positions are challenged by changing requirements of internal and external stakeholders and legislation, requiring interpretation of operating policies in order to determine the most appropriate course of action Advice provided at this level is subject to guidelines and / or professional standards. The advice may be relied upon as guidance for adopting a particular course of action which affects the manner in which policies / programs are developed

Progression Statements Band 4 → Band 5

Band 5 positions typically:

- possess broader and deeper knowledge - significant work experience is required together with knowledge not only of the relevant discipline, but the ability to understand, analyse and interpret business plans and strategies, commercial and financial practices, how the organisation is structured and operates, trends that affect the way in which work is organised and client / organisational expectations are achieved, project or casework that demands ideas, analysis, evaluation of alternatives and creative solutions
- manage projects of greater complexity (complexity could be defined as size, project outcomes, stakeholders with competing interests)
- exercise autonomy in the development and modification of methods or standards for the particular program area, rather than adapting established guidelines, prescriptions and techniques possess leadership or advanced skills in the area. Positions provide advice which initiates new developments in either policy and or program delivery.

Band 5

Band Profile Positions co-ordinate projects involving complex issues or complex project outcomes. The position plays a key role in the provision of authoritative advice on the development and implementation of policies and programs relating to program issues. Positions at this level require a broader depth of knowledge to understand, analyse and interpret subject matter for a particular program area, commercial and financial practices, and Wimmera CMA business and corporate plans and strategies.
Work Level Features • An appropriate tertiary qualification and extensive experience is required for positions classified at a Band 5, together with detailed knowledge and understanding of the issues relating to the particular area. Positions also require proven program, project or line management experience and practical understanding of financial management practices and issues. • Positions may develop and implement a number of projects • Positions may be required to facilitate a strategic, integrated approach to plans and programs • Positions may be required to contribute to the development of relevant Annual Business Plans, Strategies and reports • Positions may be required to develop policies, plans and strategies ; work at this level may have a regional or State impact • Project management undertaken is more complex in relation to a variety of client populations, diverse issues and the need to gain the participation of a network of stakeholders with different contributions and conflicting and / or competing demands • A key feature of work at this level is the requirement to develop and implement Authority policies, plans and programs relating to the program area • At this level, positions have greater autonomy to make independent decisions provided that these actions do not incur unauthorised expenditure, contravene Authority policies and procedures and affect the public image of the Authority • Positions may assist in undertaking strategic assessments of regional program issues which may initiate new developments in either policy and / or program delivery • Issues faced are complex but resolution occurs within existing organisational or professional knowledge and experience • Positions require high level communication, negotiation, liaison and presentation skills in order to influence and convince others in the pursuit of specific objectives (for example, advocacy for project funding) or to display tact and diplomacy when dealing with members of the public on sensitive issues • Positions at this level may also represent the Authority. However, advice provided to external organisations or the community may also relate to broader topics / issues, such as Wimmera CMA • Day to day decisions are made independently by the positions. Decisions that have an organisational impact or are politically sensitive or controversial are discussed with the Senior Manager.

Senior Officer (SO)

Senior Executive Officers – an employee whose duties and responsibilities exceed those specified in the definitions for Bands 1 to 5. A SO classified position will have either significant program / people management responsibilities and /or be a senior technical expert within a field or discipline..

Work Level Features

- An appropriate tertiary qualification with many years of experience is required for positions classified at this level, along with an understanding of catchment management best practice within the appropriate field.
- Positions will be responsible for the leadership of a range of concurrent programs and the facilitation of a strategic, integrated approach to plans and programs.
- Positions are required to resolve complex technical issues using a process of analysis that includes the conceptualisation, identification and development of ideas, the detailed analysis of alternative courses of action and the implications. Positions typically devise action plans and are sometimes involved in advancing new approaches.
- Positions are expected to provide expert and authoritative advice to stakeholders, management and the community regarding key issues relating to catchment management for the region.
- Positions may lead strategic assessments of regional program issues which may initiate new developments in either policy and / or program delivery
- Positions are required to lead and be accountable for the development of relevant Annual Business Plans, Strategies and reports.
- Positions at this level require strong; negotiation, liaison, leadership, stakeholder relationship and presentation skills in order to influence and convince others (for example, advocacy for project funding) or to display tact and diplomacy when dealing with members of the public on sensitive issues.
- Day to day decisions are made independently by positions in this band. Decisions that have an organisation impact or are politically sensitive or controversial are discussed with the Senior Management team; CEO and Board.

APPENDIX C: - Emergency Work

To be applied where the Australian Integrated Incident Management System (AIIMS) incident control system is in place and individual employees are requested to support the emergency services.

These terms and conditions are consistent with those applied to DEECA staff in the same situation.

1. EMERGENCY WORK

The terms of this **clause 1** apply in the circumstances of readiness for or upon the outbreak of a bushfire, prescribed burn, or other emergency AIIMS control system is used to manage the incident, or as designated by the Employer. In these circumstances the terms of this clause will prevail to the extent of any difference over other provisions of the **Wimmera CMA Enterprise Agreement**.

For clarification, these emergency provisions will apply when an employee is performing emergency related work as distinct from their ordinary duties and as directed by the designated Duty Officer.

Employees will be required to undertake a medical and fitness test relevant to their role to ensure they are fit to perform the role. The Employer will provide paid time release in accordance with its Fit for Fire Business Rule to all staff required to undertake such tests for the purpose of achieving required fitness levels.

Employees will be provided with appropriate safety clothing, footwear and equipment according to departmental issue schedules, and will maintain these items and wear such items as required.

When camped, the Employer will provide adequate sleeping, ablution and messing facilities.

1.1. Retention of classification

An Employee will retain the classification upon which they were employed immediately prior to the outbreak of an emergency, provided that the Employer may for the purpose and during any period of emergency work operations specifically assign an Employee to another classification for which a higher wage rate is prescribed in which case appropriate payment will be made.

1.2. Normal hours of work

The weekly total of hours paid at ordinary time will not exceed 38 per week to be worked in accordance with the normal accrual provisions.

1.3. Work period

The minimum work period, except as provided by **clauses 1.9 and 1.10**, will be 7.6 hours per day.

1.4. Rest period

1.4.1. For any shift up to 16 hours in length an Employee will receive a minimum rest period of at least 10 continuous hours between successive work periods.

1.4.2. Despite **clause 1.4.1**, in critical emergency circumstances an Employee must not commence a new work period without having had 8 continuous hours off duty unless directed by the Employer.

1.4.3. If an Employee is directed by the Employer and a rest period has been of fewer than 8 continuous hours in duration before the next work period has commenced, the Employee will be paid at the rate of double time for the

whole of that successive work period, until they are released from duty at the conclusion of that work period.

- 1.4.4.** For any shift between 16 and 24 hours in length a minimum rest period of 12 continuous hours is required between successive work periods.
- 1.4.5.** For any shift exceeding 24 hours in length a minimum rest period of 22 continuous hours is required between successive work periods. The following shift cannot commence before 0700 hours the next day. This is to allow one full night of sleep.
- 1.4.6.** Where the emergency arrangements require a weekly Employee to have a rest period which exceeds sixteen (16) hours, the Employee will not be penalized and will be paid for a minimum of 38 ordinary hours for each Monday to Friday work period, even where the Employee, because of these requirements, has been scheduled to work less than 38 ordinary hours in any Monday to Friday work period.
- 1.4.7.** Emergency arrangements will be, as far as possible, organised such that rest breaks greater than 16 hours between shifts do not occur more than once in any Monday to Friday period.
- 1.4.8.** Where an Employee, who is scheduled for a rest break but for operational reasons is required to remain in a bushfire/emergency base camp or other accommodation on a Saturday and/or Sunday, the Employee will be paid for a minimum of 7.6 hours for each day they remain in the base camp at the appropriate weekend rates.

1.5. Meal interval

Meal intervals will not exceed 30 minutes and will be counted as time worked.

1.6. Monday to Friday payment

All time worked on any Monday to Friday (including time worked prior to emergency work) will be paid for at the rate of ordinary time for the first 7.6 hours and at the rate of time and one half for the next 2 hours, and at the rate of double time thereafter. Provided that:

- 1.6.1.** the wage rate will revert to ordinary time when the Employee has received a rest period of 8 hours; and
- 1.6.2.** when penalty rates are being paid, and a work period extends beyond midnight, such penalty rates will continue until the end of the work period.

1.7. Saturday work

Except where the provisions of **clause 1.6.2** apply all time worked by an Employee on a Saturday will be paid for at the rate of time and one half for the first two hours and at double time thereafter.

1.8. Sunday and Public Holiday work

All time worked by an Employee on a Sunday will be paid for at double the ordinary prescribed rate and for all time worked on a Public Holiday at two and one half times the ordinary prescribed rate.

1.9. Stand-by

1.9.1. Stand-by will mean all time during which an Employee is required to remain available for an immediate recall to work.

1.9.2. An Employee on stand-by will be available either at their home or at such other place as is mutually agreed with the Employer.

1.9.3. Stand-by Payment

Date of Effect	Current	7 Aug 24 (+ 3%)	7 Aug 25 (+ 3%)	7 Aug 26 (+ 3%)	7 Aug 27 (+ 3%)
Per hour	\$19.48	\$20.06	\$20.66	\$21.28	\$21.92

1.9.4. Stand-by for Employees on Saturdays, Sundays and Public Holidays will mean an eight hour period between 10:00am and 6:00pm. Where fire conditions dictate, the stand by may be extended past 6:00pm and paid according to the rate specified in **clause 1.9.3**.

1.9.5. An Employee who is rostered to stand-by on a Saturday, Sunday or Public Holiday will be entitled to 8 hours stand-by payment for each day so rostered.

1.9.6. Provided that the Employee will be entitled to only 4 hours stand-by pay for each day so rostered if, by normal knock off time on the preceding day if that day is an ordinary working day or 5:00 pm otherwise, they are notified that stand-by for that Saturday, Sunday and/or Public Holiday has been cancelled.

1.9.7. During the period from November to April the employer may, on any normal week day which has a high fire danger rating, place an Employee on stand-by at the cessation of the normal working time for the day and/or their departure from the place where they normally ceases work for the day. Payment will be made from the normal time of cessation of work at the rate as provided in **clause 1.9.3**.

1.9.8. Where an Employee is called upon to perform fire fighting work on any day that they are on stand-by, they will in addition to their entitlements under **clause 1.10**, be paid for all stand-by performed on that day which is not paid for under **clause 1.10**.

1.9.9. Where an Employee is a designated Duty Officer on stand-by and is required to be the primary contact for initiating the response to an incident and manage the preparedness in relation to potential emergency incidents, that Employee while performing this function will be paid the relevant rate as follows:

1.9.9(a) The day rate (weekend/public holiday) of Duty Officer stand-by covers the period 10:00am to 6:00pm and will be as follows:

Date of Effect	Current	7 Aug 24 (+ 3%)	7 Aug 25 (+ 3%)	7 Aug 26 (+ 3%)	7 Aug 27 (+ 3%)
Day/night rate	\$227.42	\$234.24	\$241.27	\$248.51	\$255.96
Hourly rate	\$27.06	\$27.87	\$28.71	\$29.57	\$30.46

1.9.9(b) If the Duty Officer is recalled to perform work during the hours 10:00am to 6:00pm in accordance with **clause 1.10**, the Duty Officer will be paid overtime at appropriate penalty rates instead of the above hourly day rate.

1.9.9(c) The night rate of Duty Officer stand-by covers the period 6:00pm to 10:00am and will be as follows:

Date of Effect	Current	7 Aug 24 (+ 3%)	7 Aug 25 (+ 3%)	7 Aug 26 (+ 3%)	7 Aug 27 (+ 3%)
Night rate (6 pm-10am)	\$128.43	\$132.28	\$136.25	\$140.34	\$144.55

1.9.9(d) If the Duty Officer is recalled to perform work during the hours 6:00pm to 10:00am in accordance with **clause 1.10**, the Duty Officer will be paid overtime at appropriate penalty rates in addition to the night rate of Duty Officer stand-by.

1.9.9(e) The above allowances are paid for being available to perform duty and will include initial limited response to a telephone call or email, as long as the subject of the telephone call or email does not require further following up.

1.9.9(f) All work after the initial limited response will be remunerated as overtime. The minimum overtime payment in **clause 1.10** does not apply. Overtime payments will be paid as worked.

1.9.9(g) An employee who is required to return to their usual place or places of work is also entitled to the minimum overtime payment in **clause 1.10**.

1.10. Callout

1.10.1. An Employee recalled to perform work in or in connection with bushfire fighting or other emergency will be paid for a minimum for four (4) hours' work at the appropriate penalty rate each time they are so recalled. Provided that the Employee will not be required to work the full 4 hours if the job for which they are recalled is completed in a shorter period.

1.10.2. In addition to this initial four (4) hours, if work continues for more than this period, the Employee will be paid for the actual time worked, at appropriate penalty rates.

1.10.3. If an Employee is recalled to duty within 4 hours of ceasing a previous work period, then the total work period prior to re-commencement of work on the recall will be taken into account when calculating the hours of duty for the day, and also be used for the purposes of calculating a 16 hour work period.

1.11. Travelling time

All time spent by an Employee in proceeding to and from a bushfire or other emergency at the direction of the Employer will be regarded as time worked. Payment will commence from, and cease at, the Employer's depot, camp or normal pick-up place in the home district provided that:

1.11.1. An Employee deployed to a fire sector (as defined) or other emergency location, travelling directly to or from that fire sector or other emergency location, will have that travelling time included as fire fighting time for the purposes of **clauses 1.6 and 1.14**.

1.11.2. Time spent travelling to or from a distant depot, camp, office or staging point (from where an Employee will receive deployment instructions) will

count as time worked, however it will not attract payments under **clause 1.14.**

1.12. Resumption of normal duties

- 1.12.1.** An Employee must not commence normal duty without having had 10 continuous hours off duty unless directed by the Employer.
- 1.12.2.** Each Employee who has been engaged on emergency work will be entitled upon the cessation of such work, and prior to the resumption of normal duties, to a clear break of 10 hours without loss of pay for recognised working time occurring during such break.
- 1.12.4.** Provided further that this provision will not apply with respect to any emergency work commenced and completed between the hours of 7:00am and 5:00pm on the same day.
- 1.12.5.** Prior to returning to normal duties after working for 1 or more consecutive nights, a minimum rest period of 1 full day is required.
- 1.12.6.** The emergency response provisions of this Appendix cease to apply when, as determined by the Employer, emergency work becomes of a routine nature and integrated with normal daily operations. In the case of a bushfire, this would occur only after an emergency has reached at least “Under Control 2” bushfire status (as defined).
- 1.12.7. Rest periods for deployments between emergency duties**
 - 1.12.7(a)** A rest period of 2 full days (a minimum of 48 hours) is required between deployments comprising 7 consecutive days (including travel time) or 4 consecutive nights (plus 2 days travel time).
 - 1.12.7(b)** Prior to returning to normal duties, where there has been a combination of normal duties and fire duties of:
 - 1.12.7(b)(i)** 7 consecutive days or more, but less than 10 days – a rest period of 1 full day (24 hours) is required as a minimum; and
 - 1.12.7(b)(ii)** 10 consecutive days or more – a rest period of 2 full days (48 hours) is required as a minimum.
 - 1.12.7(c)** Where these days fall on a Saturday or a Sunday, no additional payment will be made, nor will additional time off be provided.
 - 1.12.7(d)** Where these days fall on a Monday to Friday inclusive (excluding Public Holidays), the Employee will receive payment for these days.
 - 1.12.7(e)** Where these days fall on a Public Holiday, the Employee will not receive additional time off but will receive a normal day's pay for the Public Holiday.
 - 1.12.7(f)** Where an Employee travels for 2 hours or less from the base camp to their home depot at the conclusion of a tour of duty, the day of travel will be considered a day's break in accordance with **clauses 1.12.7 (b) (i) and 1.12.7 (b) (ii)** above.

1.13. Provision of meals

The Employer will provide the usual 3 meals per day, provided that where an Employee is required to work at night the Employer will provide suitable provisions at reasonable intervals. All food supplied by the Employer will be free of charge.

The Employer will make every reasonable effort to provide meals to those deployed at an emergency. In those cases where a meal is not provided for a planned meal break, a meal will be provided after the completion of the shift.

At Prescribed Burns lunch will only be provided where Employees have been accommodated the previous night.

1.14. Fire Allowance

- 1.14.1.** An Employee deployed from their depot or camp directly to a 'fire sector' will be paid an allowance as follows per hour, or part thereof, for all time so deployed, excluding travelling time as described in **clause 1.11.2**:

Date of Effect	Current	7 Aug 24 (+3%)	7 Aug 25 (+3 %)	7 Aug 26 (+3 %)	7 Aug 27 (+3 %)
Per hour	\$14.34	\$14.77	\$15.21	\$15.67	\$16.14

- 1.14.2.** This allowance is to compensate for:

1.14.2(a) all disabilities encountered whilst firefighting, including the dirty nature of the work; and

1.14.2(b) any ordinary time worked under the emergency provisions, outside the normal spread of hours.

1.14.3. The Fire Allowance replaces the previous Firefighting Disability Allowance, the Shower Time Allowance and the additional 75 cents per hour previously described by clauses (t), (w) and (g)(iii) of Schedule E of the CNR/SPSF Collective Employment Agreement 1995/96. The Allowance is also paid in lieu of the Missed Meal, Camping and Paid Rest allowances previously provided by the equivalent appendix to this Appendix prior to the VPS Agreement's variation in May 2009.

1.14.4. The Fire Allowance will be paid to staff with air borne roles and air base personnel involved in retardant mixing, aircraft refuelling, aerial drip torch mixing and aircraft marshalling.

1.14.5. Once the bushfire is declared Under Control 2, payment of the Fire Allowance will cease.

1.14.6. The parties to this Determination intend to treat prescribed burning operations as emergency work, remunerate that work by payment of the Fire Allowance, and subject planned burns to all of the conditions of emergency work including hours arrangements.

1.15. Emergency Support Allowance

- 1.15.1.** Any Support Employees deployed to an emergency, excluding travelling time as described in **clause 1.11.2**, to perform duties will be paid an allowance as follows per hour, or part thereof:

Date of Effect	Current	7 Aug 24 (+ 3%)	7 Aug 25 (+ 3%)	7 Aug 26 (+ 3%)	7 Aug 27 (+ 3%)
Per hour	\$7.30	\$7.52	\$7.75	\$7.98	\$8.22

- 1.15.2.** This allowance is to compensate for:

- the nature of the work; and
- any ordinary time worked under the emergency provisions outside the normal spread of hours.

1.15.3. The Emergency Support Allowance replaces the previous Shower Time Allowance and the additional 75 cents per hour previously described by clauses (w) and (g)(iii) of Schedule E of the CNR/SPSF Collective

Employment Agreement 1995/96. The Allowance is also paid in lieu of the Missed Meal, Camping and Paid Rest allowances previously provided by the equivalent appendix to this Appendix prior to the VPS Agreement's variation in May 2009.

1.16. Incident Management Team Responsibility Payments

- 1.16.1. The following table applies to Employees who are trained and/or accredited to perform the following roles identified in the AIMS structure.

IMT Role	Level 3	Level 2	Level 1
Incident Controller	\$4,500	\$3,000	N/A
Operations Officer	\$3,000	\$2,000	N/A
Information Officer	\$3,000	N/A	N/A
Planning Officer	\$2,000	N/A	N/A
Logistics Officer	\$2,000	N/A	N/A
Situation Officer	\$2,000	N/A	N/A
Resources Officer	\$2,000	N/A	N/A
Burn Officer in Charge	N/A	N/A	\$2,000

- 1.16.2. Payment will be made to an Employee as a lump sum upon verification in April of each year of their training currency, attendance at annual updates and availability to be deployed over the previous fire season.
- 1.16.3. Employees accredited in more than one role will only receive payment for the highest role.

1.17. Payment of Overtime Ceiling

- 1.17.1. An Employee who is in receipt of salary up to the maximum of Band 5 is eligible to receive payment for overtime and Stand by in respect to fire suppression duties. Payment for overtime worked will be subject to the maximum payment being based on the hourly rate of the following salary (Based upon Band 4 level 1) as follows:

Date of Effect	Current	7 Aug 24 (+ 3%)	7 Aug 25 (+ 3%)	7 Aug 26 (+ 3%)	7 Aug 27 (+ 3%)
Rate (hourly rate of annual salary)	\$88,209	\$90,855	\$93,581	\$96,388	\$99,280

- 1.17.2. Where an Employee's ordinary time hourly rate is greater than the maximum payment provided by the table above, the Employee is entitled to receive their ordinary time hourly rate for overtime worked.

1.18. Definitions

- 1.18.1. Fire Sector means a defined section of the control line being used to contain a bushfire or being constructed to control a bushfire or being constructed as a backup to other lines being used to control the bushfire.
- 1.18.2. Prescribed Burn means the controlled application of fire to a defined area of land conducted in accordance with an approved burn plan to meet specified management objectives.

- 1.18.3.** Bushfire means an unplanned and uncontrolled fire where suppression action must be initiated, or a major breakaway from a planned fire requiring additional resources to that scheduled for the operation.
- 1.18.4.** Bushfire status means the categorisation of a bushfire into one of the five following definitions:
- 1.18.4(a)** **Going** – Fire is expanding in a certain directions. There is reasonable evidence (a smoke sighting, a report has been received from the public) to suggest that a fire exists and is expanding.
- 1.18.4(b)** **Contained** – Indicates that the spread of the fire is halted even though it may still be burning within the perimeter or control lines. Such a fire may still require continuous suppression action (eg. completion of fire control lines) before it is 'under control' to bring about a 'controlled' situation (status = 'Under Control 1').
- 1.18.4(c)** **Under Control 1** (fire incident status) – The complete perimeter of the fire is secured, no breakaway is expected and continuous patrol/mopping up is still required.
- 1.18.4(d)** **Under Control 1** (burn status) – The complete perimeter of the planned area of the burn is secured and no break away is expected. Continuous patrol and mopping up work is required. Fuels are not burning freely within the planned area.
- 1.18.4(e)** **Under Control 2** (fire incident status) – The complete perimeter of the fire is secured, and no breakaway is expected. Control line quality or depth is such that only patrol is required. In most circumstances this status will mean reversion to non-emergency provisions in the Wimmera CMA Workplace Agreement 2019.
- 1.18.4(f)** **Under Control 2** (burn status) – The complete perimeter of the fire is secured and no breakaway is expected. Control line quality or depth is such that only patrol is required. Only routine patrol and occasional mopping up work is required.
- 1.18.4(g)** **Safe** – The stage of fire suppression or prescribed burning when it is considered that no further suppression action or patrols are necessary.

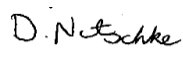
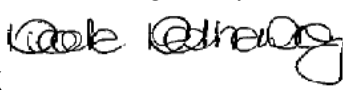
AGREEMENT SIGNATURES

This Agreement has been accepted by Wimmera CMA's employees and management. The named parties below have signed on behalf of the employees and Wimmera CMA bound by this agreement.

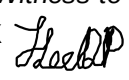
SIGNED FOR AND ON BEHALF OF THE WIMMERA CMA:

X 	David K Brennan, CHIEF EXECUTIVE OFFICER 24 Darlot Street HORSHAM 3400
<i>(Signature online above)</i> In the presence of:	Witnessed by:
<i>(Witness to sign here)</i>  X	Nicole Netherway Business Manager 24 Darlot Street HORSHAM 3400

SIGNED FOR AND ON BEHALF OF THE EMPLOYEES BY APPOINTED BARGAINING REPRESENTATIVES:

X 	Debra Nitschke Staff EA Consultative Committee Rep 24 Darlot Street HORSHAM 3400
<i>Signature on line above)</i> In the presence of:	Witnessed by:
<i>(Witness to sign here)</i>  X	Nicole Netherway Business Manager 24 Darlot Street HORSHAM 3400

SIGNED FOR AND ON BEHALF OF THE EMPLOYEES BY APPOINTED BARGAINING REPRESENTATIVES:

X 	Zoe Edwards - ASU Deputy Branch Secretary Australian Services Union 116 Queensberry Street CARLTON SOUTH 3053
<i>(Signature online above)</i> In the presence of:	Witnessed by:
<i>(Witness to sign here)</i> X 	WITNESS NAME Jasmine De Palma WITNESS TITLE Legal Administration Officer